

Landscape Planning Guide

For Peri-urban and Rural Areas



Raewyn Peart

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Raewyn Peart

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Foreword

One of the most outstanding features of the Whangarei District is its diverse landscape, from white sand and surf beaches, picturesque coves and dramatic rocky outcrops, to rural views and native forest.

Through the district planning process it has become evident that Whangarei's residents hold views on planning which are as diverse as the landscapes they value.

Whangarei District Council has sought to provide for these widely-ranging views by producing this landscape planning guide.

The guide is intended to add to a pool of best practice guidelines that will help us all to better manage landscapes and to find the balance between preservation and development.

This is a daily challenge in a district like ours where development is occurring very quickly and there is a need to enable progress, but to retain and protect those things that make this a unique place.

I hope that other councils find this a useful document and that the work that has gone into it will assist them in planning for their communities.



A handwritten signature in black ink that reads "Pamela Peters". The signature is stylized with a large, sweeping initial 'P' and a cursive script.

Whangarei Mayor
Pamela Peters

Preface

This Guide is designed to provide assistance to regional councils and territorial authorities in addressing landscape management issues in their policy statements and plans under the Resource Management Act 1991 (RMA). The RMA recognizes the importance of providing for the protection and management of natural and cultural landscapes. The Guide focuses on addressing landscape management issues arising in peri-urban and rural areas.

The Guide is primarily targeted at councillors and council staff members involved in landscape policy development. However, it will also be of assistance to people with an interest in planning for landscape management in rural and peri-urban areas and for those who become involved in district plan preparation processes under the RMA. The intent of the Guide is to provide information and advice to support effective landscape planning rather than to define a prescriptive methodology.

In preparing the Guide it was recognised that many councils lack in-house landscape expertise. The Guide focuses on providing sufficient information to enable councils to understand the process and to effectively engage expert assistance where this is required, rather than necessarily undertake the landscape assessment and planning exercises themselves.

The Guide has been presented in two parts. The first part provides introductory material on landscape management under the RMA. The second part provides more in-depth information on how to undertake landscape planning within the framework provided by the RMA. It is recommended that readers who are familiar with the landscape provisions of the RMA bypass Part 1 of the Guide and move directly to Part 2.

The Guide has been prepared by Raewyn Peart, Senior Policy Analyst for the Environmental Defence Society (EDS). The Environmental Defence Society is a non-profit environmental advocacy organisation consisting largely of resource management professionals. The Guide follows on from previous work carried out by EDS on landscape management issues. Recent publications of EDS on landscape issues include *Reclaiming our Heritage: proceedings of the New Zealand Landscape Conference* (2003) and *A Place to Stand: the protection of New Zealand's natural and cultural landscapes* (2005).

Copies of this Guide and the other reports are available from EDS at www.eds.org.nz. EDS also welcomes comment on any matters raised in this Guide or its other publications.

The material in this Guide is provided in good faith but with no guarantee as to it being comprehensive or accurate. It is not a substitute for proper professional advice and assistance where that is needed.

Acknowledgements

It was with some trepidation that I embarked on preparing this Guide at the request of Whangarei District Council. It was an ambitious project, and would not have been possible without the generous support of the following organisations and people:

- Whangarei District Council, which initiated the project and provided financial support towards the preparation and production of the Guide.
- Environment Waikato, which provided financial support towards the preparation of the Guide.
- Russell McVeagh, which provided a legal opinion on legal mechanisms to control future subdivision.
- The New Zealand Institute of Landscape Architects, which facilitated member comments on the draft Guide.
- The New Zealand Planning Institute, which commissioned peer reviews of the draft Guide.
- Stephen Brown (Stephen Brown Environments Limited In Association With Kingett Mitchell Ltd), Christine Ralph (Beca Planning), Keni Piahana and Keir Volkerling who provided substantive contributions to the Guide contents.
- Douglas Allen (Ellis Gould), Clive Anstey (landscape architect), Bob Batty (Planit. R. W. Batty & Associates Limited), Boffa Miskell Limited, Brenda Bouda (Matamata-Piako District Council), Murray Cameron (Franklin District Council), Ginny Cosgrove (Waipa District Council), Susan Edwards (Local Government New Zealand), Phillip Martelli (Western Bay of Plenty District Council), Gina McDonald (Ministry for the Environment), Fraser McRae (Waikato District Council), Kathleen Ryan, Dennis Scott (D J Scott Associates Limited), David Sissons (Christchurch City Council), Simon Smale (New Zealand Institute of Landscape Architects) and Janet Stephenson (University of Otago), who provided comments on material in the draft Guide at various stages of its preparation.
- Margaret Peart, who assisted with the production of the Guide

Responsibility for the contents of the Guide does, of course, rest with the author.

Raewyn Peart
Senior Policy Analyst
Environmental Defence Society

Part One

Introduction to Landscape Planning under the RMA

CHAPTER 1

What 'Landscape' Means

'Landscape' can be a difficult concept to pin down. It has many meanings and can represent different things to different people. Common meanings include:

- A scenically attractive vista
- The character of an area created by the interaction of natural and human influences
- Historical links between people and the land

One of the most commonly accepted contemporary interpretations of landscape involves the perception and appreciation of physical environments. Such perception is often influenced by the aesthetics, composition and three-dimensional spatial structure of the environment. Many other values influence human appreciation and evaluation of landscapes and these can vary considerably across societies and cultures. This appreciation of the physical environment is often expressed by reference to terms such as 'character', 'charm', 'sense of place' and 'identity' (Cameron 2004).

As well as being valued for aesthetics, many landscapes have cultural or historic associations, particularly for people who have been associated with an area for a long time, or where a landscape is the location of important historic events.

'To recognise a concern for 'landscape' is to become conscious of our relationship to land and be confronted with questions of meaning and value. When we give expression to our feelings about, and experiences of, the landscape we are attempting to capture the nature of our relationship with it'. (Anstey 2004)

Tangata whenua have an explicit and direct linkage to the land through whakapapa, tūpuna and marae. The landforms cue tribal stories, ancestral feats, harvest areas and renowned tūpuna. Tūrangaewae, a place where a right to stand is exercised, is inextricably tied to the land. Tauparapara (traditional chants) and whakataukū (proverbs) are traditional uses of language used to identify location. They are the hallmark expressions of mana and almost always feature the mountain, the river and the

land. Waiata such as pātere (traditional song) can provide an oral map which relies on known names for features along the route. Even where there has been marked change in the landscape through the influence of the built environment, remnant landscapes can trigger reminiscences and visualisations of what was once the papakāinga.

Landscape values emerge from the interaction of people with their environment over space and time. Landscapes are comprised of natural elements, which are the products of nature, and cultural elements which are the product of human interaction with nature. Landscapes are more than just scenery. They reflect past and present interactions between people and the land. They include both physical attributes and the values the people associate with them (see Figure 1). For tangata whenua, these elements merge in a seamless way as whenua mokohia (ancestral landscapes), the land tattooed with an imprint of culture and history.

Figure 1: Broad dimensions of landscape

LANDSCAPE	
Nature	People
Past	Future
Physical attributes scenery, nature, historic heritage	Associative values social and cultural

Adapted from Phillips 2002: 5

The term ‘landscape’ is not defined in the RMA and, given the complexity of the concept, a definition is likely to prove elusive. The Environment Court has indicated that a precise definition of ‘landscape’ under the RMA cannot be given but that the elements of a working definition include¹:

- Landscape involves natural and physical resources, including land, water, air, plants, animals and structures, and various factors relating to the individual viewers and their perception of the resources.
- Landscape provides a linkage between individual natural and physical resources and the environment as a whole, through considering a group of such resources together and emphasising that our attitudes to these resources are affected by social, economic, aesthetic and cultural conditions.

This definition acknowledges that landscape is not a singular resource such as ‘soils’ or ‘vegetation’. It is an integrative concept which is applied to the management of a group of resources and which incorporates the human values associated with them.

The Environment Court has indicated that the concept of landscape has a wide scope under the RMA (see Figure 2). A wide range of landscape values, including those articulated through the Environment Court, merit consideration when a council is preparing landscape provisions for its district plan.

¹ Wakatipu Environmental Society Incorporated and ors v Queenstown-Lakes District Council [2000] NZRMA 59, paragraphs 77 and 78.

Figure 2: Elements of landscape as defined by the Environment Court²

- *Natural science factors* including the geological, topographical, ecological and dynamic components of landscape
- *Aesthetic values* including memorability and naturalness
- *Expressiveness* (legibility) which is how obviously the landscape demonstrates the formative processes leading to it
- *Transient values* which includes the occasional presence of wildlife, or its values at certain times of the day or of the year
- Whether the *values are shared and recognised*
- Value to *tangata whenua*
- *Historical* associations

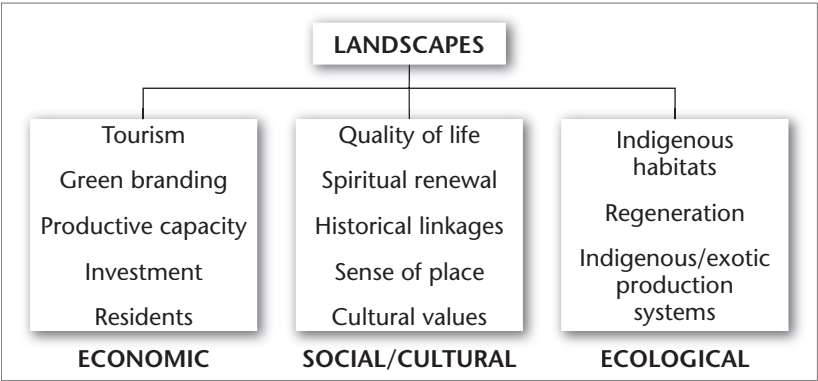
² Ibid, paragraph 72.

CHAPTER 2

Why Landscapes are Important

Landscapes are important for a range of social, ecological, economic and cultural reasons (see Figures 3 and 4).

Figure 3: Importance of landscape



Landscapes contribute significantly to both urban and rural quality of life. They determine the aesthetics of the broader environment within which people live. Landscapes also underpin the ‘sense of place’ which contributes to the feeling of belonging, psychological well-being, and attachment to a particular part of the world.

Accessible natural landscapes can provide respite from the pressures of modern living. Visiting such landscapes can be important for spiritual renewal and enable people to get back in touch with nature and to refresh their minds and bodies.

Landscapes reflect New Zealand’s geological history and provide a haven for New Zealand’s unique biodiversity. This may be in the form of existing or regenerating indigenous habitats, or through opportunities provided for indigenous species to contribute to farming, agricultural and forestry production systems as well as to urban green spaces (Meurk and Swaffield 2000).

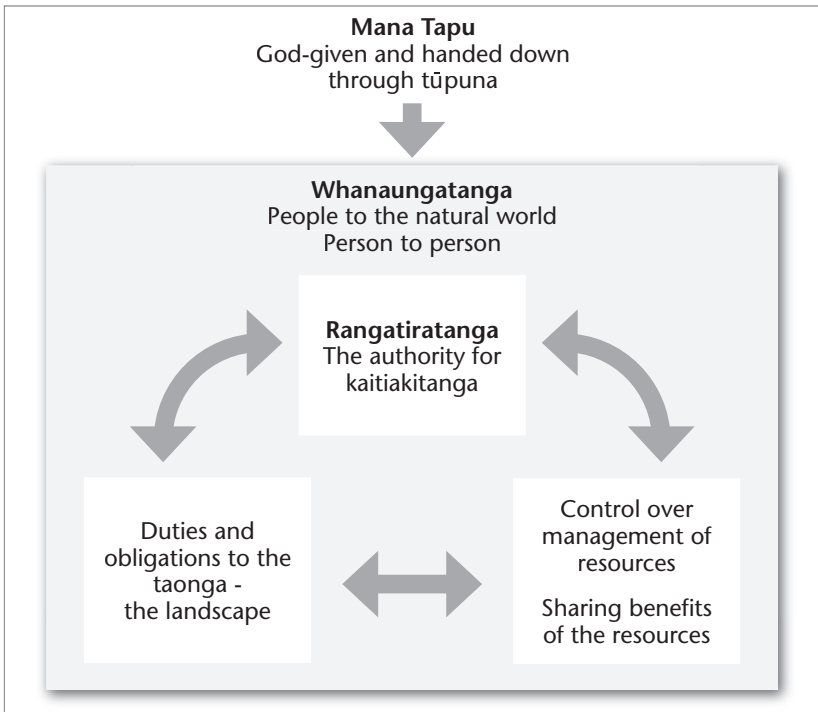
Landscapes play an important economic role nationally, underpinning New Zealand’s substantial tourism industry and adding value to exports through New Zealand’s ‘clean and green’ branding. They also provide the productive base for many primary industries including agriculture, horticulture and forestry. It is these primary production activities which have significantly contributed to the evolution of many of our current rural landscapes. Landscapes play a significant role in regional and district

economies through supporting land-based industries and tourism, and attracting residents and investment to an area.

For tangata whenua, relationships to the landscape are principally exercised through kaitiakitanga (see Appendix 1). 'Kaitiakitanga' is defined in the RMA as being '...the exercise of guardianship by the tangata whenua of an area in accordance with tikanga Māori in relation to natural and physical resources, and includes the ethic of stewardship' (section 2).

The traditional exercise of kaitiakitanga involves concepts far broader than 'stewardship' or 'guardianship'. It is based on the spiritual values associated with the Māori cosmogony, or explanation of the origin of the universe. This includes a belief that all natural and physical resources, animate and inanimate, were created before people and are therefore deserving of respect due to their senior status. Kaitiakitanga includes the responsibility to ensure that any harvest is sustainable and fairly distributed. Cultural harvest is an essential component of the landscape for tangata whenua, the functional being an integral component of landscape and the kaitiakitanga that applies to it.

Figure 4: Relationship of Māori with landscape



CHAPTER 3

Statutory Principles Governing Landscape Planning

Statutory principles governing planning for landscapes, established at a national level, are included both in the RMA and in the New Zealand Coastal Policy Statement (NZCPS).

RMA principles

The purpose of the RMA is ‘to promote the sustainable management of natural and physical resources’ (section 5). Although the Act does not define ‘landscape’, (as discussed previously), the Environment Court has stated that it involves ‘natural and physical resources’ which include land, water, air, minerals, energy, all forms of plants and animals and structures (section 2) as well as human perception of these resources.

The concept of ‘sustainable management’ is further defined in section 5(2) of the Act, as:

... managing the use, development and protection of natural and physical resources in a way, or at a rate, which enables people and communities to provide for their social, economic, and cultural wellbeing and for their health and safety while –

- (a) Sustaining the potential of natural and physical resources (excluding minerals) to meet the reasonable foreseeable needs of future generations;*
- (b) Safeguarding the life-supporting capacity of air, water, soil, and ecosystems; and*
- (c) Avoiding, remedying or mitigating any adverse effects of activities on the environment.*

The Act only explicitly refers to landscape in two places. Section 6(b) identifies the protection of outstanding natural landscapes as a matter of national importance and requires persons exercising powers and functions under the Act to:

recognise and provide for ... the protection of outstanding natural features and landscapes from inappropriate subdivision, use and development ...

Clause 2(b) of the Fourth Schedule identifies landscape as a matter to be considered when preparing an assessment of effects on the environment:

Any physical effect on the locality, including any landscape and visual effects ...

Special consideration for landscape management is implied in several other matters of national importance identified in section 6 of the Act, because

many important landscapes will incorporate areas of the coastal environment with high natural character, areas of significant indigenous vegetation and areas of cultural and historic significance. The relevant sections include:

The preservation of the natural character of the coastal environment (including the coastal marine area), wetlands, and lakes and rivers and their margins, and the protection of them from inappropriate subdivision, use and development (section 6(a))

The protection of areas of significant indigenous vegetation and significant habitats of indigenous fauna (section 6(c))

The relationship of Māori and their culture and traditions with their ancestral lands, water, sites, wāhi tapu, and other taonga (section 6(e))

The protection of historic heritage from inappropriate subdivision, use, and development' (section 6(f))

Under section 7, other landscapes also arguably merit management attention if they are a contributor to amenity values and the quality of the environment more generally. Sections 7(c) and (f) require persons exercising powers and functions under the Act to:

have particular regard to ... the maintenance and enhancement of amenity values ... [and the] maintenance and enhancement of the quality of the environment ...

In terms of principles governing the relationship of Māori with landscape, section 5 sets the kaupapa, consistent with kaitiakitanga, as the promotion of sustainable management. Section 6(e) requires, as a matter of national importance, the recognition of and provision for 'the relationship of Māori and their culture and traditions with their ancestral lands, water, sites, wāhi tapu and other taonga'. Section 7(a) requires decision makers to give particular regard to 'kaitiakitanga' and section 8 requires that the principles of the Treaty of Waitangi (Te Tiriti o Waitangi) are taken into account.

NZCPS principles

The New Zealand Coastal Policy Statement sets out a number of principles which are to be applied to the management of landscapes within the coastal environment. Regional policy statements and district and regional plans are required to 'give effect to' these principles.

The extent of the 'coastal environment' is not defined in the RMA or the NZCPS. Case law indicates that it refers to an environment in which the coast is a significant part or element. This is likely to include the coastal marine area (the area from mean high water springs to the outer limits of the territorial sea), the active coastal zone and the land backdrop (Maplesden and Boffa Miskell 2000: 56).

The NZCPS contains a large number of policies to be applied to the management of landscapes in the coastal environment. They include:

- Encouraging appropriate subdivision, use or development in areas where the natural character has already been compromised and avoiding sprawling or sporadic subdivision, use or development in the coastal environment (policy 1.1.1(a))
- Avoiding cumulative adverse effects of subdivision, use and development in the coastal environment (policy 1.1.1(c))
- Protecting landscapes, seascapes and landforms, including significant representative examples of each landform which provide the variety in each region; visually or scientifically significant geological features; and the collective characteristics which give the coastal environment its natural character, including wild and scenic areas (policy 1.1.3(a))
- Protecting characteristics of special spiritual, historical or cultural significance to Māori, identified in accordance with tikanga Māori (policy 1.1.3(b))
- Protecting significant places or areas of historic or cultural significance (policy 1.1.3(c))
- Adverse effects of subdivision, use or development in the coastal environment should as far as practicable be avoided. Where complete avoidance is not practicable, the adverse effects should be mitigated and provision made for remedying those effects, to the extent practicable (policy 3.2.2)
- Provision should be made to ensure that the cumulative effects of activities, collectively, in the coastal environment are not adverse to a significant degree (policy 3.2.4).

In addition, the NZCPS indicates that policy statements and plans should:

- Identify (in the coastal environment) those scenic, recreational and historic areas, areas of spiritual or cultural significance, and those scientific and landscape features, which are important to the region or district and which should therefore be given special protection; and policy statements and plans should give them appropriate protection (policy 3.1.2)
- Define what form of subdivision, use and development would be appropriate in the coastal environment, and where it would be appropriate (policy 3.2.1)

These policies collectively place an obligation on local authorities to carefully plan coastal development so that it is contained within areas already developed and so that cumulative effects are, where practicable, avoided (rather than remedied or mitigated) and do not create significant adverse effects. In addition, policy statements and plans are required to identify coastal landscapes of importance to the district or region and to provide them with special protection.

CHAPTER 4

Landscape Planning Categories

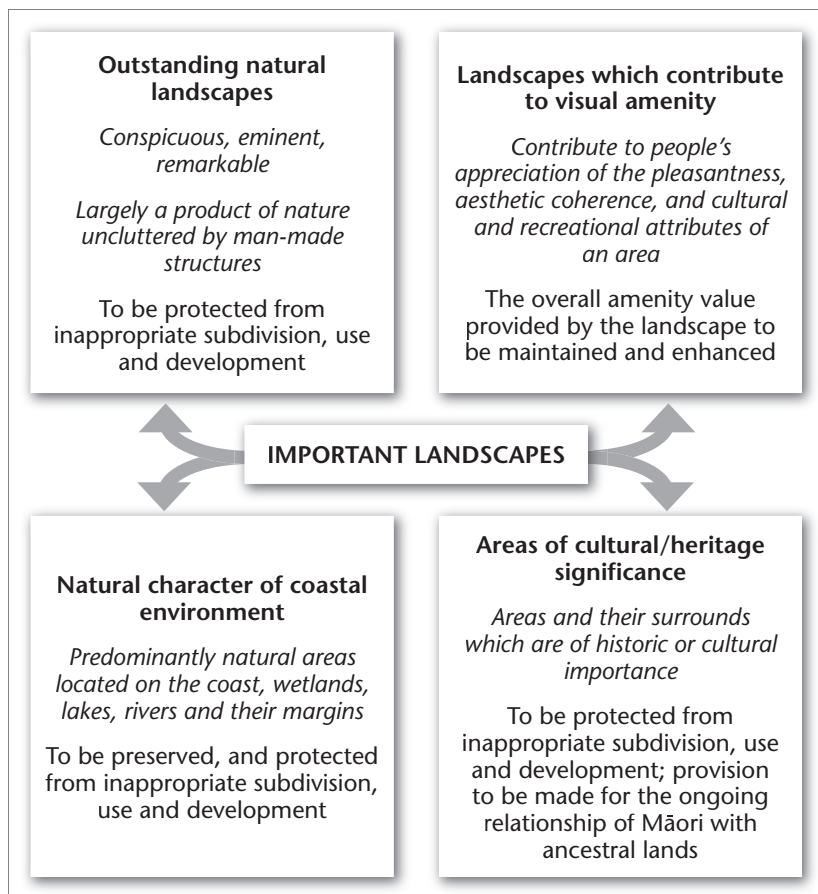
Although the RMA only explicitly refers to one category of landscape, 'outstanding natural features and landscapes', other provisions implicitly incorporate landscape planning considerations as discussed in chapter 4. The Environment Court explicitly acknowledged three categories of landscape when considering the Queenstown-Lakes District. The first was outstanding natural landscapes and features which were described as 'Romantic' landscapes incorporating mountains and lakes. The second was visual amenity landscapes which were described as pastoral 'Arcadian' landscapes with human activity much more evident. The third category was landscapes in respect of which there are no resource management issues³.

A closer scrutiny of the other provisions of Part II of the RMA enables the identification of four broad categories of landscapes which merit more dedicated focus in regional and district planning, each with slightly different management objectives: outstanding natural landscapes, landscapes which contribute to visual amenity and/or the quality of the environment, areas of the coastal environment with high natural character and areas with cultural or heritage significance (see Figure 5). These categories are overlapping and interconnected and may not always have distinct boundaries.

Although landscape management, like any other environmental management exercise, is necessarily going to focus on some priority areas, there is a need to be concerned for the maintenance and enhancement of landscape quality everywhere. All landscapes arguably merit some management consideration under the 'sustainable management' purpose of the RMA and the requirement to avoid, remedy or mitigate adverse effects of activities on the environment.

³ *Wakatipu vs Queenstown-Lakes*, paragraphs 92 and 93 (see note 1).

Figure 5: Landscape planning categories



Outstanding natural landscapes

'Outstanding natural features and landscapes' are to be protected from 'inappropriate subdivision, use, and development' under section 6(b) of the RMA. All persons exercising powers and functions under the Act are required to 'recognise and provide for' such protection.

A landscape is outstanding if it is conspicuous, eminent or remarkable within the context of the district⁴.

What is 'natural' has been defined by the Environment Court as being something which is a 'product of nature'. It therefore includes pasture and exotic tree species but not man-made structures. A landscape with

⁴ *Wakatipu vs Queenstown-Lakes*, paragraphs 82 and 85 (see note 1).

structures may still have a degree of naturalness but it will be less 'natural' than an unaltered landscape or a landscape without structures⁵.

Features of a natural landscape include:

- Evident physical landform and relief
- Lack of a clutter of structures and/or 'obvious' human influence
- Presence of water (lakes, rivers, sea)
- Presence of vegetation (especially native vegetation) and other ecological patterns⁶.

The case law provides no clear guidance on what is 'inappropriate subdivision, use and development'. Appropriateness seems likely to be determined by the extent to which the proposed activity will impact on the values which have been identified as making the landscape outstanding in the first place.

Natural character of the coastal environment

The natural character of the coastal environment, wetlands, and lakes and rivers and their margins is to be preserved and protected from inappropriate subdivision, use and development under section 6(a) of the RMA.

The term 'natural character' is not defined in the RMA. Case law and professional practice indicate that it is comprised of three main elements: natural processes, natural elements and natural patterns. Natural processes include the action of rivers, waves, tides, wind and geological as well as ecological processes. Natural processes produce natural elements including landforms and vegetation cover. The distribution of these natural elements over space forms natural patterns (Maplesden and Boffa Miskell 2000: 92-93).

The word 'preserved' in section 6(a) suggests the need to maintain natural character in its existing state, whereas 'protected' indicates a requirement to guard it against a threat. The former is a higher standard than the latter.

Although all parts of the coastal environment have some natural character which needs protection, natural character is most likely to be preserved or highly protected where the coastal environment is predominantly natural and free from cultural influences. This means that landscapes within the coastal environment with a high degree of natural character are probably afforded greater protection under the RMA than other landscapes⁷.

The NZCPS provides that landscape features, as well as areas of historical, spiritual or cultural significance in the coastal environment, should be identified and given special protection (policy 3.1.2). In addition, the

5 *Wakatipu vs Queenstown-Lakes*, paragraphs 88 and 89 (see note 1).

6 *Wakatipu vs Queenstown-Lakes*, paragraphs 88 and 89 (see note 1).

7 See Maplesden and Boffa Miskell (2000) sections 3.3 and 3.4.

collective characteristics which give the coastal environment its natural character are to be protected (policy 1.1.3(a)).

There is considerable overlap between the concepts of natural character and landscape. They do however have different emphases. 'Natural character' emphasises the importance of natural processes whereas 'landscape' emphasises the importance of public perceptions of a group of natural resources.

Areas of cultural/heritage significance

'Historic heritage' is to be protected from inappropriate subdivision, use and development under section 6(f) of the RMA. 'Historic heritage' is defined in the Act as including historic sites, structures, places and areas; archeological sites; and sites of significance to Māori, including wāhi tapu and their surroundings.

The definition under section 6(f) indicates that the surroundings associated with historic places and sites of significance to Māori are part of historic heritage, but does not explicitly refer to the broader concept of historic or cultural landscapes. Arguably, such landscapes consist of culturally or historically significant areas and their surrounds, so are provided special protection under section 6(f).

This interpretation is supported to some extent by the legislative history of the section. The terms 'cultural landscapes' and 'ancestral landscapes' were included in the definition of 'historic heritage' in the Resource Management Amendment Bill (No. 2), as reported back to the House by the Local Government and Environment Select Committee. A Supplementary Order Paper was, however, later introduced which deleted these words. It included an explanatory note to the effect that these terms were already covered by the definition of 'historic heritage', but this view has yet to be tested.

The New Zealand Historic Places Trust uses the term 'historic landscapes' to describe:

... those landscapes, or networks of sites, which deserve special recognition or protection because of their heritage significance to communities, tangata whenua or the nation. They encompass physical structures and changes made to the environment by people, natural landforms modified by human action, the meanings given to places, and the stories told about them (New Zealand Historic Places Trust 2003: 2).

In addition to section 6(f), provision is to be made under section 6(e) for the relationship of Māori and their culture and traditions with their ancestral lands, water, sites, wāhi tapu, and other taonga. What is of outstanding value to tangata whenua can be easily overlooked. Many local landscapes that are significant to local lore, custom and practice, and

which embody a significant aspect of cultural identity and rangatiratanga, are not overly dramatic or outstanding in Western cultural terms.

Landscapes which contribute to visual amenity and/or environmental quality

Landscapes which contribute to visual amenity and the quality of the environment are implicitly given special recognition under sections 7(c) and (d) of the RMA, wherein all persons exercising powers and functions under the Act are required to have particular regard to 'the maintenance and enhancement of amenity values' and 'maintenance and enhancement of the quality of the environment'. These include landscapes which contribute to people's appreciation of the pleasantness, aesthetic coherence and cultural or recreational attributes of an area⁸ as well as those which contribute to the functioning of ecosystems⁹. They include many of our 'working' productive landscapes.

Unlike outstanding natural landscapes which are to be protected, there is no presumption that landscapes which contribute to visual amenity and environmental quality will be retained in their current state¹⁰. Such landscapes often continually change, as rural economies, land uses and settlement patterns evolve over time. Change is to be carefully managed, however, to ensure that the overall amenity and environmental quality of the area is maintained or enhanced while supporting continuing and evolving productive uses of rural areas. It may include ensuring that areas of special natural or cultural value and sensitive visual areas, such as ridgelines and headlands, are protected and that ecological 'patches' and connective corridors, such as those along waterways, are enhanced.

Strategic implications for landscape planning

An analysis of these landscape planning categories indicates that, in terms of managing the impacts of development on landscapes, there may be three broad types of management approaches.

The first would be applied to areas where there are outstanding natural landscapes, coastal areas of high natural character and/or natural landscapes with high cultural or historic values. These landscapes will usually have few visible buildings or structures. They are afforded a high level of protection under the RMA. Management efforts are likely to focus on retaining low intensity rural uses and supporting sustainable land management practices which maintain and enhance landscape values.

The second type of management approach would be applied to landscapes which contribute to the visual amenity and environmental quality of an area but which have lower landscape and natural character values. These landscapes are likely to have been extensively modified by human

⁸ See definition of 'amenity values' in section 2 of the RMA.

⁹ Included in definition of 'environment' in section 2 of the RMA.

¹⁰ *Wakatipu vs Queenstown-Lakes*, paragraph 91 (see note 1).

activities such as the removal of indigenous vegetation for pastoral activity. They may have degraded soil and waterways from unsustainable farming activity and may contain built structures, but not to the extent that these dominate the natural environment. These landscapes can often accommodate change and low levels of development if managed carefully. Management efforts may focus on linking positive land management and restoration initiatives, including indigenous revegetation and the protection of waterways and areas of special value, with an appropriate intensification of use through subdivision and development.

The third broad type of management approach would be applied to those areas which are already heavily developed and where the built environment dominates the natural environment. These are areas where management may focus on encouraging further development, where there is spare capacity, but with an emphasis on encouraging good urban design in order to maintain local amenity. Providing for development in these areas can help lessen demand in more sensitive locations.

CHAPTER 5

Responsibilities for Landscape Planning

The RMA provides a role for the Minister for the Environment, Minister of Conservation, regional councils, territorial authorities and iwi authorities in planning for effective landscape management (see Figure 6).

Figure 6: Responsibilities for landscape planning

Minister for the Environment <i>National Policy Statement (optional)</i> National landscape objectives and policies	Minister of Conservation <i>New Zealand Coastal Policy Statement (mandatory)</i> National coastal landscape objectives and policies
Regional Councils <i>Regional Policy Statement (mandatory)</i> <i>Regional Plans (optional)</i> Regional landscape objectives and policies	
Territorial Authorities <i>District Plan (mandatory)</i> District landscape objectives, policies and methods (including rules)	
Iwi Authorities <i>Iwi Planning Documents (optional)</i> Landscape management issues of importance to iwi	

The *Minister for the Environment* has the power to develop national policy statements to state objectives and policies for matters of national significance, including the management of outstanding natural features and landscapes (section 45). To date there is no national policy statement to give national guidance to councils on landscape management and there is no statement currently being prepared.

The *Minister of Conservation* is charged with preparing a New Zealand Coastal Policy Statement (NZCPS) which contains policies which apply to the coastal environment. The existing NZCPS became operative in 1994 and is currently being revised. The relevant provisions of the policy statement were described in chapter 3 of this Guide.

Regional councils have the role of preparing 'objectives and policies' in relation to 'regionally significant' effects of the use, development or protection of land' (section 30(b)). This is largely achieved through the preparation of a regional policy statement and/or regional plans, although regional councils can also use a range of non-statutory mechanisms. District plans must be not inconsistent with provisions in the applicable regional policy statement and also, in most circumstances, applicable regional plans (section 75(2)). Amendments to the RMA, which would require regional and district plans to 'give effect to' regional policy statements, are currently being proposed.

A regional policy statement must state 'the significant resource management issues for the region' and 'the resource management issues of significance to iwi authorities in the region'. It is then required to state the objectives sought to be achieved by the statement, and policies for the issues and objectives, amongst other things (section 62). Given the identification of landscape protection as a matter of national importance in section 6 of the RMA, it is difficult to see how landscape management could fail to be a significant resource management issue for a region. One would therefore expect landscape issues to be addressed in all regional policy statements.

Territorial authorities are charged with controlling the 'effects' of the use, development or protection of land (section 31(b)), including effects on landscapes. The main mechanisms at their disposal to achieve this are objectives, policies and rules in the district plan and the processing of resource consent applications. Non-statutory mechanisms such as financial incentives and education can also be deployed. Because many impacts on landscape result from land use, territorial authorities play the most significant role in terms of landscape planning.

Iwi authorities have the role of preparing iwi planning documents which may address landscape issues. When preparing a district plan, territorial authorities must 'take into account any relevant planning document recognised by an iwi authority, and lodged with the authority, to the extent that its content has a bearing on resource management issues of the district' (section 74(2A)). In practice, iwi planning documents appear to have had little impact on the content of district plans in respect of landscape issues. This may be because of the inherent difficulty of effectively articulating an iwi position in a different cultural context and in a manner which can interface with the RMA planning system, while retaining the essence of the original kaitiakitanga intent. Iwi resources are also stretched by the need to interface with a multiplicity of statutory planning issues and authorities.

Part Two

Undertaking Landscape Planning

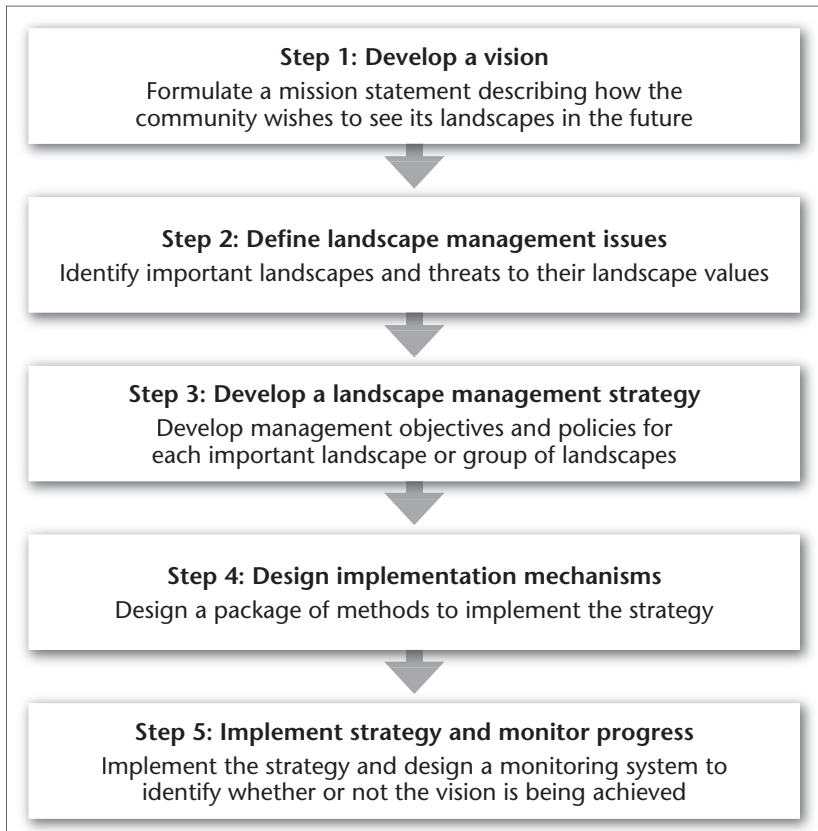
CHAPTER 6

Strategic Approach to Landscape Planning

A strategic approach to landscape planning is driven by a community vision as to what landscapes should look like in the future, and focuses on developing and implementing an effective strategy to achieve that vision.

Landscape planning can be conceptualised as consisting of five key steps: developing a vision; defining the nature and extent of the landscape management issues which the community is facing; developing a strategy to address the issues and achieve the vision; identifying specific actions and mechanisms for implementing the strategy; implementing the strategy and monitoring progress in achieving the vision (see Figure 7).

Figure 7: Steps in a strategic approach to landscape planning



Although these steps are shown in sequence here, in practice they are likely to be iterative. For example, developing a better understanding of current landscapes through a landscape assessment process can help in the development of a vision for their future, as well as in understanding what is important to keep from the past.

When embarking on a landscape planning process as a council planner, it will be important to ensure that council politicians are involved in the process from the beginning, and that they support the approach being adopted and the work being undertaken.

Where the council has previously undertaken a landscape assessment and/or planning exercise, a review of the existing material can help identify elements which are still valid and which can be used to inform a revised landscape management assessment and strategy. The availability of material from previous exercises may reduce the scale of the planning process and resultant costs.

CHAPTER 7

Developing a Vision

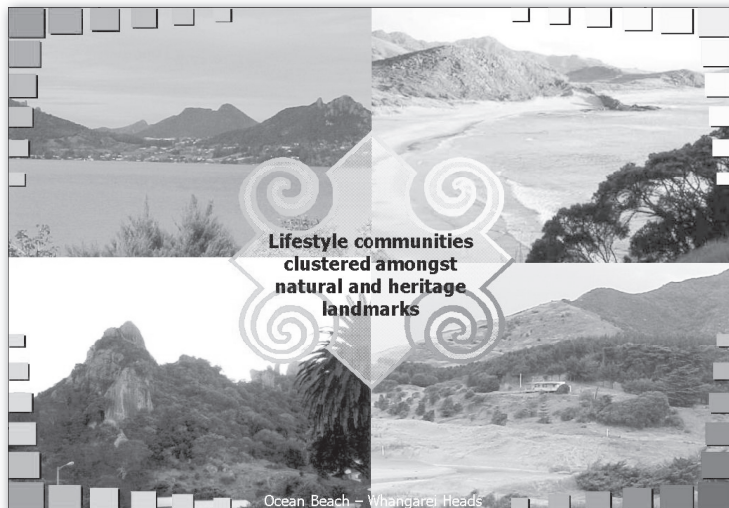
The purpose of landscape planning is to achieve a desired future outcome for landscapes. Articulating a clear vision of what the community seeks for its landscapes can help set a positive framework for the landscape planning exercise. Such a vision can address questions such as:

- What should the landscapes within the district look like in ten or twenty years time?
- What landscapes should be protected from change?
- What landscapes need to be restored?
- What kind and extent of change is acceptable?
- What type of development is appropriate in which landscapes?

In some cases, existing visions developed through strategic planning initiatives undertaken by the council, such as the preparation of Long Term Council Community Plans, coastal management strategies or urban growth strategies, may provide a sufficient framework for a landscape planning exercise.

An example of a vision developed by the Whangarei Heads community, in the context of the preparation of the Whangarei Coastal Management Strategy, reflects the balance sought by that community between development and preserving important natural and cultural landscapes (see Figure 8).

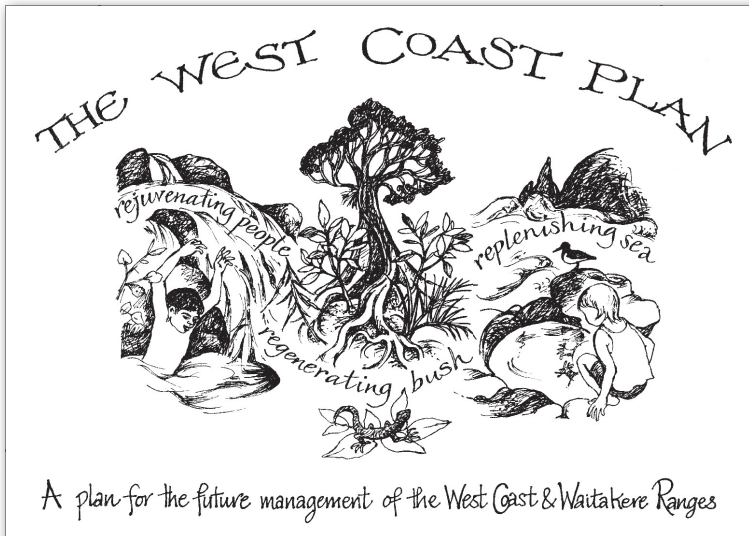
Figure 8: Vision for Whangarei Heads



Source: Beca Planning 2002

The community on the west coast of Waitakere City developed a vision as part of the development of a strategic plan for their area (see Figure 9) (West Coast Liaison Group 2003: 4):

Figure 9: A vision for the west coast of the Waitakere City



As guardians of the West Coast and the Waitakere Ranges, we acknowledge the interdependence of the people with this dramatic and inspiring place. The sea, the coast, and the ranges are envisioned as supporting a superb quality of life for people and locally appropriate plants and wildlife, which is sustained for generations.

Source: West Coast Liaison Group 2003

CHAPTER 8

Identifying Important Landscapes¹¹

Identifying which landscapes within the district are important, and any threats to their values, enables management efforts to be focused on key issues. The Environment Court has indicated that, in respect of section 6 matters (which include outstanding natural landscapes, the natural character of the coastal environment, wetlands, lakes and rivers and historic heritage), the boundaries of the areas concerned should be identified with as much accuracy as possible, as part of the issue identification phase of district planning. In respect of the Queenstown-Lakes District, which is renowned for the quality of its scenery (on which a huge part of its economy depends), the Court stated that, in the fact-finding phase of preparing its plan, the council should also identify any other landscapes, additional to outstanding natural landscapes, to which particular regard should be had¹².

The prime mechanism for identifying important landscapes within a district is a landscape assessment. Such assessments can have a range of purposes including:

- The identification of different types of landscapes, and landscape features, within the district
- The identification of community values attached to landscape and those types of landscape, and specific landscapes, that the community value highly
- The identification of those landscapes that have strong cultural or historic significance to their associated communities or to the people of the region or district
- The identification of tangata whenua priorities and specific landscapes of value
- The identification of different landscape sensitivities and those valued locations that are more or less susceptible to the effects of change

Although the methodologies adopted for landscape assessments differ, they will normally incorporate the following distinct components:

- Contextual description
- Landscape description
- Landscape characterisation
- Landscape evaluation

Contextual description

The purpose of this component of the assessment is to describe the larger context within which the landscape assessment is being undertaken and to identify the implications of that context for the specific assessment

¹¹ This section of the Guide draws largely from the elements of frameworks described in Swaffield (1999a), DOC (2002) and Swanwick (2002) and the input of Stephen Brown.

¹² *Wakatipu vs Queenstown-Lakes*, paragraphs 56 and 57 (see note 1).

work. Such a description will normally include the following elements and the interactions between them:

- The *policy context* - any relevant provisions of the regional policy statement, other provisions of the district plan, other relevant regional and/or district policy or planning documents, any relevant iwi management plan and the provisions of the NZCPS where the geographical scope of the assessment includes any part of the coastal environment.
- The *bio-physical context* - the broad geomorphological (land forming) and ecological processes at work in the particular landscape area and the broader landscape within which the specific landscape assessment is being undertaken.
- The *historical and cultural context* - how current communities of interest use and value the landscape, and significant stories associated with the landscape.
- The *tangata whenua context* – the background of tangata whenua arrival and occupation of each area including waka and iwi affiliations, Treaty of Waitangi relationships with the Crown, statutory compliance issues, and relationships and current issues with regional councils and territorial authorities.

Landscape description

This step involves describing the natural and cultural features, patterns and processes of the landscape under study, in as objective terms as possible. It can include describing the landscape in terms of its:

- *Land form* – including a general description of the underlying geological formation of the land, as well as its geomorphological and ecological development, and subsequent cultural modification.
- *Land cover* – including indigenous and modified plant communities and exotic production systems.
- *Landscape features* – which include human artifacts and patterns as well as strong natural features which may include water bodies and coastal margins.
- *Landscape patterns and structure* - which reflect and embody the interaction of physical elements and features that contribute fundamentally to the visible composition of a landscape and its visual character.
- *History* – the key stories about human interaction with the landscape.
- *Cultural associations* – the identification of groups, including tangata whenua, that have associations with the landscape and the nature of those associations.

Such information can be spatially ordered in several ways, such as by reference to visual catchments and/or biophysical factors like land systems or hydrological catchments.

Landscape characterisation

This step involves the use of professional judgement to ‘make sense’ of the descriptive material collected. It entails classifying the landscape into its component types and character areas. It is a critical step, because it orders the information into a framework, which is then used in the subsequent landscape evaluation. It can therefore have a significant impact on which landscapes are identified as important within the region or district.

Landscape characterisation is undertaken through identifying different landscape types. Careful thought is required to identify the most appropriate typology to be used for the district. The typology will need to enable the results to be translated into planning mechanisms. It should also, where possible, reflect the manner in which the people within the region or district relate to the landscape. This is so that community values can be sensibly ascribed to different landscape areas when landscapes are evaluated. It also helps to ensure that the results of the assessment ‘make sense’ to affected stakeholders and the wider community. Community consultation is likely to be required at this stage to obtain a better understanding of how different groups of people relate to the landscape and what constitutes their sense of place.

Typologies can include:

- Landscape character types – identified on the basis of their geomorphic structure, vegetation and other surface elements, water bodies and land uses. These in turn lend the landscape a range of values, including structure and patterns; memorability, diversity, coherence, legibility and other sensory values; nativeness and endemism; a sense of place; and cultural meaning.
- Ecological districts - reflecting different habitat types
- Visual catchments
- Hydrological catchments
- Iwi rohe and the primary tangata whenua landscape values within that area
- Culturally defined places – landscapes with historic and cultural significance.

Landscape characterisation typically involves identifying each landscape character type or area on a map. This is accompanied by a written description which details the key characteristics of each area, the combination of elements which help give it a distinct character and often a sense of place. Such characteristics merit careful identification and description as they are likely to become a major reference point in making decisions about the future of the landscape and monitoring change.

As well as characterisation, landscape interpretation also involves identifying forces for change. These are the issues and pressures affecting the landscape and its key features. They might include development

pressures, trends in land management, forestry, aquaculture, weeds and pests, and natural forces such as flooding and climate change.

Landscape evaluation

During this step, the relative importance or value of particular landscapes is determined as the basis for guiding their future management. It is highly desirable that community consultation is undertaken at this stage, in order to incorporate public values into the evaluation process as well as to verify the results of that process. Such consultation can also help to ensure that the criteria used are seen as credible and legitimate by stakeholders, especially affected landowners. It will not necessarily result in consensus, but will help to identify different values attached to different landscapes.

Landscape evaluation is undertaken through the application of evaluation criteria to the landscapes identified during the characterisation process. Different criteria may be applied depending on the circumstances but they should, where possible:

- Be relevant to the requirements of the RMA for landscape planning
- Be relevant to the landscape planning requirements of the district
- Cover all the necessary dimensions of landscape including geological, ecological, aesthetic, cultural and historical aspects
- Incorporate public perceptions of landscape value
- Acknowledge kaitiakitanga and mātauranga Māori understandings.
- Be internally complementary and compatible
- Be clearly defined and easily understood
- Be considered credible and legitimate by stakeholders.

Landscape value can be assessed by a range of factors including:

- *Biophysical landscape quality* – the intactness of the landscape and the condition of features and elements
- *Scenic quality* – the extent to which the landscape appeals to the visual senses
- *Rarity* – the presence of rare features and elements or a rare landscape character type
- *Representativeness* – whether landscape contains a particular character worthy of being represented
- *Conservation interests* – the presence of features of particular wildlife or earth science interest
- *Wildness / wilderness / remoteness* – the presence of wild character which makes a particular contribution to the sense of place (particularly related to the NZCPS)

- *Heritage value* – the presence of features, characteristics or associations that are of cultural or historic significance
- *Tangata whenua interests* – presence of features or characteristics of importance to tangata whenua

Whatever criteria are chosen, they should be accompanied by a clear rationale as to why they are being used.

Q-Sort Method for identifying public preferences

A useful methodology for identifying public preferences for different landscape types is the Q-Sort method. This method has been used in various parts of the country over the past 12 years and has developed considerable credibility.

The Q-Sort method utilises public responses to different landscape types to identify the range of values and meanings associated with each. These results enable the development of a good understanding of the significance of different types of landscapes.

Q-Sort evaluation usually involves the following steps:

- Photographing representative areas of different landscape types (as identified in the landscape characterisation process described above) throughout the district
- Using surveys of the general public, focus and/or expert groups within the district to identify relative preferences for different types of landscapes based on the photographs
- Analysing and translating of the results of the Q-Sort study to identify the geographical location of important landscapes
- Identifying the characteristics which make these important.

Undertaking a landscape assessment

Issues that merit consideration before undertaking a landscape assessment include identifying the desired outcomes, identifying the set of skills required to carry out the assessment, preparing a clear ‘terms of reference’ which ensures that the outcomes of the assessment will meet the council’s needs, and providing for an appropriate time frame and budget. Many councils lack the expertise in-house to undertake a comprehensive landscape assessment of the district and may consider commissioning outside consultants to carry out the work.

Clear outcomes

A council is likely to obtain the most value from a landscape assessment if, at the inception of the project, it has a clear idea of what outcomes are required from the exercise and how they will be used in strengthening landscape planning within the district. Desirable outcomes include those for process and product.

An important process outcome is that the findings of the landscape assessment are seen, by most residents of the district, as being robust and credible and as accurately identifying landscapes of importance to the district. If such public endorsement is not achieved during the landscape assessment process itself, it may be difficult for the council to garner sufficient support to use the results of the assessment to guide planning responses.

Product outcomes of a landscape assessment may include:

- The identification of landscapes of importance to the district
- The identification of specific valued landscape features or elements at a quite detailed level
- A full description of why each landscape is important to the district and the values which make each important
- A delineation of the boundaries of each important landscape
- The identification of current and likely future threats to the values of these important landscapes, and their vulnerability to these threats
- Recommended management techniques to address the identified threats.

Assembling the required set of skills

The landscape assessment team is likely to need skills in:

- Visual assessment
- Natural sciences (geomorphology and ecology)
- Historical / cultural land associations
- Public and iwi consultation.

It is unlikely that all these skills will be found in one person and often a small team, whose members jointly cover all the necessary skill areas, is needed. In particular, effective consultation with iwi will require appropriate expertise. If such expertise is not available within the council or landscape assessment team, it could be contracted out as a specific function. This may incur additional costs in the short term, but the longer term benefits of a better managed processes and the reduction of unnecessary conflict may ultimately result in reduced costs.

Preparing the terms of reference

Before embarking on a landscape assessment process, the council may consider developing clear terms of reference, to ensure that the work carried out will produce the outcomes required for the planning process. Matters which a terms of reference can address include the following (see Figure 10):

- *The overall objective of the assessment* – what it is intended to achieve and how it will contribute to achieving the requirements for landscape planning under the RMA.
- *The outcomes required from the assessment* – including what form the outputs should take and how the results will be used. The results may be used immediately to assist with the development of plan provisions. They may also be used to set a framework and baseline for future monitoring and review.
- *The scope of the assessment* – including what spatial area the assessment will cover and what elements of landscape are to be assessed. Where a landscape assessment has already been undertaken for all or part of the district, efforts may be focused on updating or expanding the work already undertaken. Where resources are limited, a ‘rolling’ landscape assessment could be undertaken, with assessment work being initially focused on areas where landscapes are under the greatest threat.
- *The scale of the assessment* – at what scale the assessment will be carried out and what level of detail will be provided. For example, will the results need to be transferred to planning maps or onto a Geographic Information System (GIS)? Difficulties have been experienced by some councils in translating the boundaries of important landscapes as identified by a landscape assessment exercise onto planning maps. It is useful to address this issue prior to the assessment work commencing.
- *The stakeholders in the assessment* – identifying who they are and how they will be involved in the assessment.
- *The methodology to be adopted for the assessment* – describing how it will meet the overall objective of the assessment and the outcomes required, and describing what judgements will be made, who will make them and how they will be made.
- *The sources of information to be drawn on for the assessment* – which may include published and unpublished documents, previous landscape assessments, data sets, survey results, field observations and consultation exercises.
- *The limitations of the assessment* – which may include lack of suitable data or inherent limitations in the methodology adopted. The implications of the limitations for the subsequent application of the study’s findings should be identified.
- *The interpretation of assessment findings* – the extent to which the landscape assessment team is to be involved in the development of landscape management strategy and implementation mechanisms.

Ensuring a 'cross-over' of personnel involved in the landscape assessment, and in the process of using the results of the assessment to inform the development of planning mechanisms, helps to ensure that the information gained through the assessment process is appropriately utilised in the subsequent work.

A draft terms of engagement is shown in Appendix 2.

Figure 10: Summary of terms of reference

- Objective of assessment
- Desired outcomes
- Scope of assessment
- Scale of assessment
- Stakeholders involvement
- Methodology to be adopted
- Source of information
- Limitations of assessment
- Interpretation of findings

Time frame

The time frame required to carry out a landscape assessment exercise will be very much dependant on the scale and scope of the study and the physical extent of the district. Councils will probably need to allow at least twelve months for a full district assessment incorporating meaningful consultation with the public and tangata whenua.

Budget

The budget required to carry out a robust landscape assessment is also very dependant on the scope and physical area being addressed, what information is already available, whether or not public preference evaluation is part of the process, and the amount of input required to translate the findings into policy recommendations. Landscape assessments typically cost somewhere between \$35,000 and \$250,000, with most district assessments being close to \$100,000 when they include a meaningful public consultation process.

It may be possible to embark on a joint initiative, with other territorial authorities and the regional council, to commission landscape assessment work across the whole region. The results could then be utilised by the different parties and refined at a district level. Such an approach could enable cost sharing thereby providing financial savings.

CHAPTER 9

Identifying Threats to Important Landscapes

The use of land and its associated natural and physical resources can have effects which singly or cumulatively threaten important landscape values. Such threats can arise from numerous sources including:

- Buildings, structures and associated infrastructure which singly or cumulatively intrude into and/or dominate a natural or cultural landscape.
- Earthworks and vegetation removal associated with the construction of buildings, structures or infrastructure.
- Monoculture forestry and other cultivation activities which can introduce hard geometric lines and patterns into the landscape.
- Poor land management practices such as the removal of indigenous vegetation, over stocking, failure to exclude stock from natural waterways and coastal margins, undergrazing areas of indigenous vegetation, and poor weed and pest control. These practices can result in soil degradation, erosion and slumping; weed infestation; destruction of natural habitats; and the degradation of river and coastal margins.
- The spread of wilding exotic species.

Such threats can be identified through an assessment of current and likely future land uses and their potential effects on landscape values. Information on current land use can usually be obtained from records held by the territorial authority and regional council, including monitoring records, land use surveys and aerial photography. The Department of Conservation often holds information on ecological changes and levels of bush clearance within each conservancy.

The likelihood of potential future land uses can be assessed through the analysis of a range of information:

- Current *land ownership patterns* can provide some indication of an area's susceptibility to future land use change. Land which is in public ownership for conservation purposes is unlikely to change use. Use of land in private ownership is much more likely to be subject to changes in market demand. Land owned by enterprises with a specific sectoral interest, such as forestry, mining, horticulture or lifestyle/residential development, may be ultimately transferred to that use. It may be possible to identify what could realistically be expected, particularly in terms of subdivision, if these opportunities were taken up in the context of current plan provisions.
- Current *land management practices*, which may result in the enhancement or degradation of landscape values. For example, the extent to which grazing is excluded from existing areas of indigenous

vegetation, streams, wetlands and marginal areas can have a significant impact on the quality of the habitat and the rates of regeneration.

- *Land use trends* can provide an indication of likely future change. For example, a gradual reduction in the amount of land used for farming and an increase in subdivision and the creation of lifestyle blocks can indicate a transition from rural production to low density residential land use.
- *Land cover changes* can indicate the extent to which the vegetation cover is changing through such mechanisms as bush clearance, bush regeneration, the establishment of plantations and the spread of invasive species.
- *Economic trends* can also indicate where the market is likely to drive future land use in an area. If the profitability of extensive agriculture is reducing, this is likely to prompt a transition to higher value uses such as lifestyle development or intensive horticulture. Property values are also indicative of the impact of economic trends on land use. High and rising values which are not linked to the productive capacity of the land signal the likelihood of future land use change.
- *Future aspirations of landowners*, which can be identified through one-on-one discussions, could provide a useful indication of likely future change.

Once potential future uses of the land within an important landscape are identified, the potential effects of these uses on landscape values can be assessed. It may be possible to draw information to assist this process from the landscape assessment exercise, if it has identified the ability of different landscapes to accommodate change.

Identifying important landscapes and their values within the districts, and threats to these values, helps to identify the key issues which the district is facing in effectively managing its landscapes.

Landscape issues faced by Waitakere City

The Waitakere City District Plan articulates the specific landscape issues facing that district as follows:

- a visual deterioration of the natural landscapes through the introduction of more buildings, structures and urban style roads;
- undermining of the wilderness character of the landscapes from the increased presence of visitors, residents and traffic;
- encroachment of coastal village settlements on the surrounding outstanding landscapes;
- domination of landscape elements through the placement of structures on ridgelines and headlands and other natural landscape elements;
- modification of landscape elements, alteration of the form and coverage of land forms, the land/water interface, and vegetation cover;
- dominance of natural landscape character by structures of inappropriate colour.

Waitakere City District Plan 2003, section 5.0, page 52

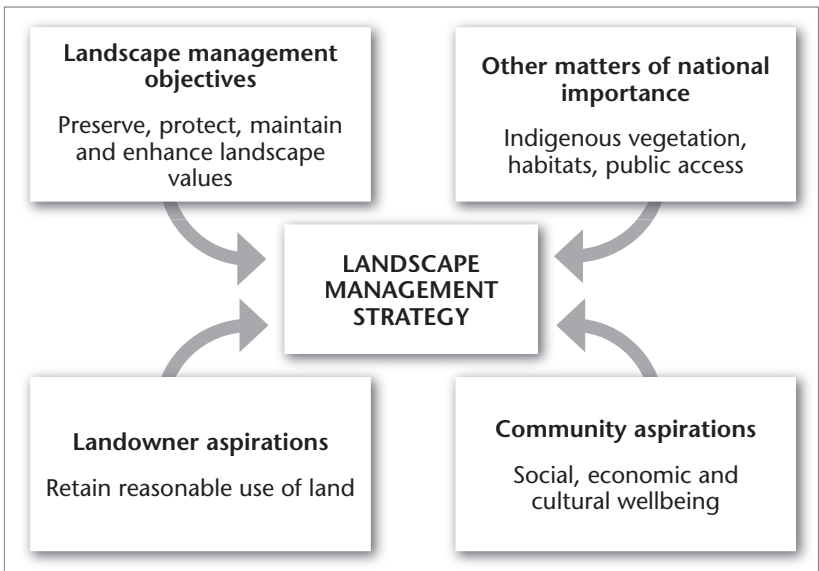
CHAPTER 10

Developing a Landscape Strategy

A landscape strategy sets out the direction and course the district intends to take to achieve its overall landscape vision. It is articulated in management objectives which describe environmental outcomes for each landscape or landscape type and the policies which describe how these outcomes will be achieved.

The schema of the RMA suggests that the development of a landscape strategy involves bringing together a range of considerations, including applying the principles of the RMA for landscape management (as described in chapter 3) while addressing other matters of national importance in section 6 of the Act, community aspirations and landowner aspirations (see Figure 11).

Figure 11: Matters to be considered in developing a landscape management strategy



As already indicated, sections 6 and 7 of the RMA require that different categories of landscapes be preserved, protected, maintained and enhanced (termed here collectively as ‘important landscapes’) and section 6 also requires other matters of national importance to be simultaneously provided for.

At the same time, section 5 requires the management of natural and physical resources in a manner which enables people and communities to provide for their social, economic and cultural wellbeing. Community aspirations to meet such wellbeing may have been identified through the process of preparing Long Term Council Community Plans under the Local Government Act 2002, or through other visioning and strategic planning exercises.

Section 85 of the RMA also requires that district plan provisions do not render an interest in land incapable of reasonable use. They must also not place an unfair and unreasonable burden on a landowner. In practice, landscape management needs to reflect practical and ongoing day-to-day land management and economic considerations. Landowners' aspirations for the future of use of their land, and the economic viability of these uses, are therefore matters which need to be carefully considered when developing the landscape management strategy. Ascertaining these is likely to require one-to-one discussions with key affected landowners. This does not mean, however, that private property rights take precedence over other rights or values people attach to important landscapes. The High Court, in interpreting the RMA, has made it clear that the public interest in the sustainable management of resources takes precedence over private property rights¹³.

The development of a landscape management strategy involves synthesizing these considerations, in order to identify the most effective and appropriate way of managing important landscape values within the district. The strategy may be articulated in the context of different localities or types of landscapes. It is likely to include a range of actions which is far broader than regulation under the RMA.

A catchment management approach is one way in which a range of information relevant to landscape management can be synthesised. This approach can be used to integrate important visual and cultural landscape values with ecological elements of the landscape, to identify areas which need to be highly protected and areas which are suitable for various levels of development.

Catchment management approach applied to Hauraki Gulf Islands

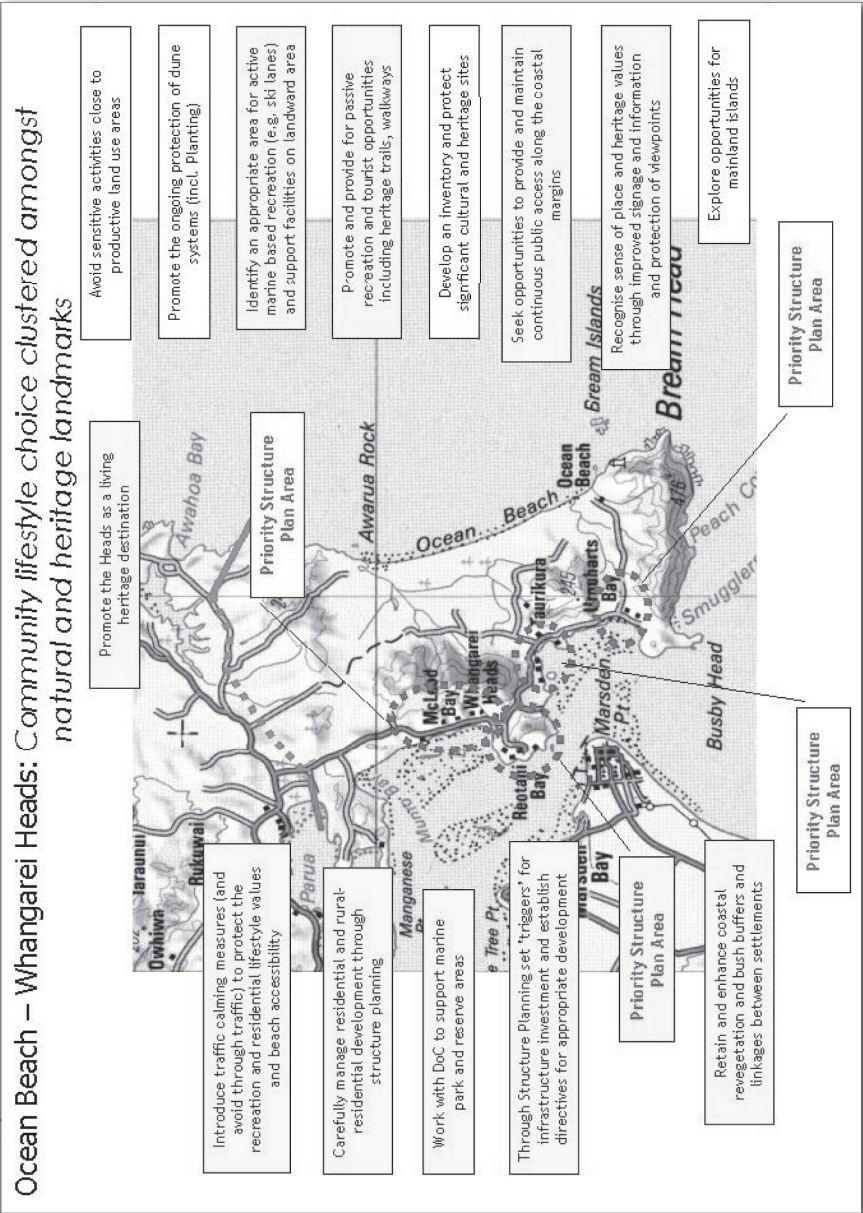
In the Hauraki Gulf Islands Section of the City of Auckland District Plan, a catchment management approach was used to identify broad geographic units with common elements (Strategic Management Areas) and different landscape types ('Land Units' and 'Policy Areas') within the Strategic Management Areas for which different objectives, policies and methods were developed.

Scott 1998: 119-122

An example of a localised strategy developed for Whangarei Heads as part of the Coastal Management Strategy is shown in Figure 12. This deals with a wider range of issues than purely landscape, but illustrates the broad range and types of activities which a strategy may cover in order to achieve its vision.

¹³ See *Falkner v Gisborne District Council* [1995] 3 NZLR 622 and *Barton* (2003).

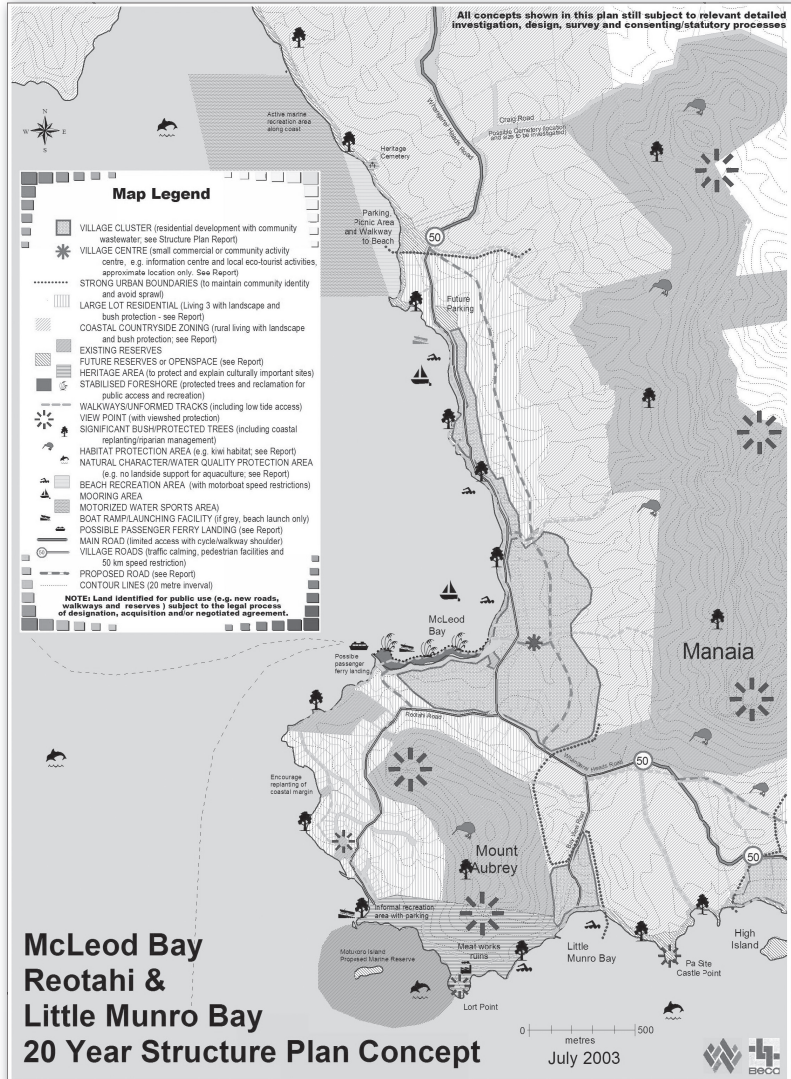
Figure 12: Policy Area Implementation Map for Whangarei Heads



Source: Beca Planning 2002

Another way of expressing a strategic direction visually is through concept structure plans. These can identify areas for urban development, urban limits, areas of protected landscapes, and the location of important infrastructure, as well as other key elements (see Figure 13).

Figure 13: Structure Plan Concept for McLeod Bay, Reotahi and Little Munro Bay, Whangarei District



CHAPTER 11

Developing Landscape Management Objectives and Policies

Objectives and policies within the district plan articulate in detail the landscape management strategy. They provide the framework within which resource consent applications are assessed. They also serve to sieve out applications for inappropriate non-complying activities, as one of the tests for such applications is whether or not they are contrary to the objectives and policies of the district plan (section 104D). To achieve their intended effect, objectives and policies need to be clearly and precisely expressed and do more than reiterate the provisions of the RMA such as 'avoiding, remedying or mitigating any adverse effects of activities' on important landscape values.

Objectives

Objectives identify the desired environmental state or goal for the landscape. They indicate the extent to which important values are to be preserved and/or protected and the extent and nature of change which could occur without adversely impacting on those values. This is guided by the relevant principles in the RMA and the NZCPS (see chapter 3).

Examples of landscape management objectives in district plans

'To protect the quality and significance of the City's outstanding landscapes, including maintaining:

- The form and significance of those landscape elements that define each landscape;
- The landscape character that is associated with each landscape and contributes to its uniqueness and value for residents'

(Waitakere City District Plan 2003, Objective 9).

'Maintained or enhanced naturalness of the landscapes as it contributes to the natural character of the lakes catchment' *(Rotorua District Plan 2000, Lakes A Zone).*

'To provide for a diverse range of land use activities compatible with maintaining the special environmental amenity and open rural landscape of Land Unit 20, in order to secure its long term protection as a rural buffer area with potentially productive rural land use capability in some parts' *(City of Auckland District Plan Hauraki Gulf Islands Section 1996, Land Unit 20 – Landscape Protection).*

'To ensure that development leads to enhanced land management practices and continues rural use which fosters and enhances landscape and environmental values' *(City of Auckland District Plan Hauraki Gulf Islands Section 1996, Land Unit 22 – Western Landscape).*

'To retain the open and remote coastal/non-urban character of the area and the high landscape and natural environmental values present, whilst enabling the continued operation of the productive activities undertaken' *(Rodney District Plan 1993, Change 55).*

Policies

Policies describe the means by which the defined environmental outcomes, identified in the objectives, will be achieved. This includes identifying effects which should be avoided, remedied, or mitigated in specific landscapes and, in broad terms, how this will be achieved.

Policies may be developed for the whole district and/or for specific management or policy areas. Examples of policies with a landscape focus in the Waitakere City District Plan, Rotorua District Plan and the Queenstown-Lakes District Plan are shown below.

WAITAKERE CITY DISTRICT PLAN

Effects on Outstanding Landscapes

Settlement within the City's outstanding landscapes should:

Be of a type and density that does not degrade natural landscape features, their wilderness character, or other landscape characteristics;

Urban development should be avoided on areas identified as having outstanding landscape characteristics ...

Only limited further settlement shall occur in the Waitakere Ranges Environment and Bush Living Environment area outside the Metropolitan Urban Limit, in recognition of the outstanding landscape qualities of this area. Minor household units are not permitted in this area, unless attached to the main dwellinghouse ...

Waitakere City District Plan 2003, Policy 9.1

ROTORUA DISTRICT PLAN LAKES A ZONE**Specific policies for Tarawera Policy Area**

- P2.5.1 To protect and enhance the natural character of the policy area based on:
- (a) Protection of existing indigenous vegetation
 - (b) Afforestation and/or revegetation of steep land
 - (c) Retirement and restoration of the shoreline
 - (d) Protection of the outstanding natural feature of Mount Tarawera.
- P2.5.2 To ensure that activities and recreational opportunities:
- (a) Retain character that has the appearance of being uninhabited away from the settlement
 - (b) Protect and enhance the existing natural character of the policy area.
- P2.5.3 To avoid the presence of buildings and structures which:
- (a) Detract from the naturalness of the views of Lake Tarawera and Mount Tarawera from identified viewpoints
 - (b) Are obtrusive when viewed from Lake Tarawera
 - (c) Reduce the natural landscape contexts of the settlement
 - (d) Are placed on prominent landform units.
- P2.5.4 To retain the natural character by ensuring that:
- (a) Buildings and structures are low-rise, low key, well spaced and nestle into the vegetation
 - (b) The proliferation of lake structures is reduced and avoided
 - (c) Lake structures adjacent to the settlement do not dominate the unbuilt nature of the lake
 - (d) Vessels are restricted on the lake.
- P2.5.5 To seek protection of vegetation and to promote re-vegetation around buildings and structures to enhance the naturalness of the policy area.
- P2.5.6 To manage excessive noise levels at the shoreline.
- P2.5.7 To maintain and enhance a scenic and vegetated road character.
- P2.5.8 To manage subdivision, use and development of land in ways that:
- (a) Revegetate prominent slopes and erosion prone land
 - (b) Enhance water quality
 - (c) Enhance buffers to protect water bodies
 - (d) Protect historic places and historic heritage
 - (e) Enhance the integrity of indigenous ecology of the Rotorua Lakes Ecological District
 - (f) Recognise the tangata whenua heritage associations.

QUEENSTOWN-LAKES DISTRICT PLAN

Landscape Policies for Wakatipu Basin

- (a) To avoid subdivision and development on the outstanding natural landscapes and features of the Wakatipu Basin unless subdivision and/or development will not result in adverse effects which will be more than minor on:
 - (i) Landscape values and natural character; and
 - (ii) Visual amenity values
 - recognising and providing for:
 - (iii) The desirability of ensuring that buildings and structures and associated roading plans and boundary developments have a visual impact which will be no more than minor, which in the context of the landscapes of the Wakatipu Basin means reasonably difficult to see;
 - (iv) The need to avoid further cumulative deterioration of the Wakatipu Basin's outstanding natural landscapes;
 - (v) The importance of protecting the naturalness and enhancing the amenity values of views from public places including public roads
 - (vi) The essential importance in this area of protecting and enhancing the naturalness of the landscapes.
- (b) To maintain the openness of those outstanding natural landscapes and features which have an open character at present.
- (c) To remedy or mitigate the continuing effects of past inappropriate subdivision and/or development.

Landscape policies for urban development

- (a) To avoid new urban development in the outstanding natural landscapes of Wakatipu Basin.
- (b) To discourage urban subdivision and development in other outstanding natural landscapes (and features) and in the visual amenity landscapes of the district.
- (c) To avoid, remedy and mitigate the adverse effects of urban subdivision and development where it does occur in the other outstanding natural landscapes of the district by:
 - maintaining the open character of those outstanding natural landscapes which are open at the date this plan becomes operative;
 - ensuring that the subdivision and development does not sprawl along roads.
- (d) To avoid, remedy and mitigate the adverse effects of urban subdivision and development in visual amenity landscapes by avoiding sprawling subdivision and development along roads.

CHAPTER 12

Design of Landscape Management Methods

Landscape management methods provide the means by which the objectives and policies are implemented to ultimately achieve the vision. These methods can be broadly conceptualised as being directed to achieving one or more of the following (see Figure 14):

- Spatially identifying the location of important landscapes or highly valued and/or sensitive areas within a landscape (**location of landscapes**)
- Identifying activities which are inappropriate in particular landscape areas, because of their negative effects which cannot be adequately mitigated, and therefore should be avoided altogether (**location of activities**)
- Identifying activities which need to be carefully managed if located in particular landscape areas and providing for such management. This may include controls on how much certain types of activity may occur (**density of activities**) and how they may occur (**site specific design**)
- Encouraging landowners to protect and enhance important landscape values (**methods to encourage landowners**)
- Encouraging the community more generally to protect and enhance important landscape values (**methods to encourage the community**)

More detailed information about the advantages and disadvantages of different landscape management methods is contained in the publication produced by the Ministry for the Environment titled *'The impact of rural subdivision and development on landscape values'* (Ministry for the Environment 2000a).

Figure 14: Summary of landscape management methods

ISSUE	METHODS
Location of important landscapes	• Landscape management zones • Landscape policy areas • Natural environment policy areas
Activity effects	• Restrictive zoning • Strategic land purchase • Land management agreements
Density effects	• Minimum site areas • Minimum separation distances between dwellings • Average site areas • Requirements to cluster buildings • Concept development plans • Restrictive covenants preventing future subdivision
Site specific effects	• Maximum building height • Maximum site coverage • Prescribed building platform • Visually unobtrusive building design • Location of buildings away from ridgelines, headlands and visually prominent areas • Prescribed external colours and building materials • Restrictions on location and extent of earthworks • Restrictions on location and extent of vegetation clearance • Restrictions on location and extent of infrastructure
Landowner encouragement	• Conservation lots • Transferable development rights • Rating relief • Reimbursement of fencing, covenanting and ongoing management costs • Land management agreements • Design guides • Transfer of powers
Community involvement	• Landcare groups • Coast Care groups • Other sustainable land management initiatives

Potential permitted baseline pitfalls

The 'permitted baseline' provision has important implications for the content of plans. This provision provides that, when considering an application for a resource consent, the consent authority may disregard adverse effects of an activity if the plan permits an activity with that effect (sections 94A(a) and 104(2)). This means that, if the council decides to permit an activity in its plan in an important landscape because of the economic or social benefits of the activity, it potentially opens the area up to other activities with similar negative impacts but without the associated positive impacts.

For example, the plan may provide for farm buildings as a permitted activity in an important rural landscape because of a wish to minimise interference with a major rural economic activity in the area. However, such an approach could potentially enable the visual effects of a house to be disregarded if these were similar to the visual effects of a farm building. Similar issues can arise where commercial forestry and associated activities are provided for as a permitted activity.

It is therefore important that all plan rules which affect important landscape areas are reviewed, and if necessary amended, to ensure that all activities which may affect important landscape values are appropriately managed.

Location of important landscapes

Important landscapes can be identified on planning maps by the delineation of:

- *Special landscape management zones* – these are likely to be more appropriate for large areas where landscape values are to receive special management, often focused on outstanding natural landscapes.
- *Natural and/or cultural landscape policy areas which overlay zones* – these are likely to be more appropriate for smaller areas or features which have special landscape values, located within broader zones.
- *Natural environment policy areas* – these are areas where landscape and other important natural and cultural heritage considerations are integrated into special management areas. This approach is likely to be more appropriate in 'working landscapes' and where important ecological values are linked with landscape values. This mechanism has been adopted by the Waitakere City District Plan which includes a 'Natural Area' layer incorporating landscape and ecological values, as well as a 'Human Environment' layer.

The Environment Court has indicated that, in the case of 'working landscapes', the identification of landscape zones might not be appropriate and that more ecologically-based zonings may be more effective in achieving 'truly integrated management of the adverse effects of land

use on land'¹⁴. This suggests that an integrated ecological and landscape zoning, such as might be achieved through an integrated catchment management approach, may be more appropriate in these areas.

Methods to manage effects of specific activities

Activities which are inappropriate in specific landscape areas, because of their potential adverse effects which cannot be adequately mitigated, can be excluded through restrictive zoning. Where activities are sought to be excluded, they can be identified in the plan as either non-complying or prohibited.

The benefit of prohibited activity status is that it provides more certainty, as a change to the plan is required before the activity can proceed. The plan change procedure enables a broader consideration of the district-wide and cumulative impacts of a specific type of activity to be undertaken than is possible with a resource consent application, but requires more time and resources. Before applying the prohibited activity status, it will be important to demonstrate that the effects of the activity are significantly adverse and are unable to be mitigated, avoided or remedied. The Environment Court recently indicated that prohibited activity status should only be used where the activity in question should not be contemplated in the relevant place under any circumstances¹⁵.

Resource consent applications can be made for non-complying activities, although it must be established that either the adverse effects on the environment will be minor or that the activity will not be contrary to the objectives and policies of the relevant plan, before consent can be granted (section 104D). If the objectives and policies of the plan are worded in a broad and non-specific manner, the second leg of the test is not difficult to meet. Many applications for non-complying activities obtain consent. Specifying activities as non-complying in the plan provides less certainty than prohibited activity status, but does allow genuine exceptions which have merit to obtain consent without needing to go through a plan change procedure.

Another way to exclude inappropriate activities is for the council to purchase strategic parcels of land to protect important landscapes or, alternatively, negotiate management agreements with the current landowners to waive development options. These alternatives are, however, expensive and are only likely to be feasible at a district level for a few key locations.

Where activities may be appropriate if their effects are mitigated, they can be identified as controlled, restricted discretionary or discretionary activities, depending on the level of control the council wishes to exert over the activity.

14 *Wilkinson & or v Hurumui District Council* C50/2000, paragraph 39.

15 *New Zealand Mineral Industry Association and Chief Executive of the Ministry of Economic Development v Thames-Coromandel District Council* W50/2004, paragraph 13.

Methods to manage density effects

The density of buildings and structures is a major determinant of the cumulative impact of structures on predominantly natural landscapes. Building densities can be prescribed in the district plan to enable the council to manage the cumulative effects of increasing numbers of buildings. In areas where some development is appropriate, there are several regulatory mechanisms which can be used:

- *A minimum site area or separation distance between dwellings* can effectively control subdivision and building density by spacing development out over the zoned area. This can reduce the density to a level that the landscape is capable of absorbing. It is conceptually simple, easy to administer and provides some certainty about the level of development which can occur in an area. It may, however, result in buildings being inappropriately dotted throughout the landscape. Such an approach can also be arbitrary and fail to accommodate differences in landscapes and their ability to absorb development.
- *An average site area and more specific requirements to cluster buildings* can also control the overall visual effect of development by encouraging the grouping of buildings in a confined area with larger natural areas being retained. These mechanisms allow more flexibility than the minimum site area method. This approach may, however, degrade the landscape in the vicinity of the clustered buildings. In addition, further subdivision may occur in the larger unsubdivided area in the absence of a long-term protective mechanism, such as a restrictive covenant.
- *Concept development plans* (sometimes referred to as structure plans) can identify the potential location of building platforms within an area, through a constraints mapping exercise which identifies and excludes sensitive areas from development. This is a more 'effects-based' tool for controlling density than minimum or average site areas. It enables the integrated consideration of an area and, if incorporated into the district plan, provides some certainty as to what is likely to occur in specific areas. If developed without a clear vision and overriding strategic framework for the development of an area, however, this approach can catalyse significant landscape change rather than help to achieve a desired future state for a landscape (for a review of the application of this approach in Waitakere City see Waitakere City Council 2003).
- *A covenant* being placed on the title to prevent future subdivision is a potentially effective mechanism to prevent subsequent subdivision of a site which is currently being developed. The application of covenants is discussed in more detail in Appendix 3.

Methods to manage site specific effects

The location and design of individual buildings and other structures can significantly impact on their landscape effects. Site-specific design issues can be regulated by assessment criteria and other specific protective rules such as ridgeline and view shaft protection. Assessment criteria could include the following in respect of buildings and structures:

- Maximum building height
- Maximum site coverage
- Prescribed building platform
- Visually unobtrusive building design
- Location of buildings away from ridgelines, headlands and visually prominent areas
- Prescribed external colours and building materials
- Restrictions on the location and extent of earthworks
- Restrictions on the location and extent of vegetation clearance
- Restrictions on the location and extent of infrastructure

Examples of comprehensive assessment criteria contained in the Queenstown-Lakes District Plan are shown in Appendix 4.

Methods to encourage landowners

There are several mechanisms which can seek to mitigate the impact of landscape protection tools on landowners as well as encourage land management that preserves landscape values:

- A *conservation lot* provision can enable a landowner to subdivide an additional lot off a parent title if a special landscape or natural feature is protected in perpetuity through means such as fencing and covenanting. This provides the landowner with a benefit from protecting important pieces of land. The overall environmental gain may be reduced, however, if the benefit lot is able to be created in a sensitive area.
- *Transferable development rights* can provide landowners with a development benefit to compensate for reduced development rights in an important landscape area. They enable the right to subdivide to be transferred from one site which is not suitable for development to another site which is. In practice, the approach can be difficult to implement in rural areas. It will normally require a legal mechanism such as a covenant to restrict subdivision rights in the donor area. It also may require the donor landowner to negotiate an arrangement with a landowner in the recipient area to utilise the development right.

- *Rating relief* can reduce the holding costs of land which has a high value due to its development potential and provide some compensation for areas set aside for conservation purposes. Under section 102(5) of the Local Government Act 2002, a council may adopt a rates remission policy which could address rating relief for landowners retaining land for farming activities in areas where land values are unrelated to the productive capacity of the land, due to strong development pressure.
- *Financial assistance* can be provided by the council, or through other agencies such as the Queen Elizabeth II National Trust, for fencing and covenanting costs where areas of land are protected in perpetuity.
- *Land management agreements* can be negotiated between council and landowners. These may provide that the land owner receives some ongoing financial compensation for foregoing development rights and providing other community benefits such public access to the land. However, as indicated earlier, this is an expensive option which will be outside the means of district councils in more than a few areas.
- *Design guides* can describe and illustrate the kind of design solutions that the council is looking for in different landscape settings. They may include such considerations as the layout of lots, the location and scale of buildings in the landscape, the type and location of planting, the design of earthworks and the location of infrastructure. Good examples of design guides are those prepared for the Queenstown-Lakes District (see CivicCorp and Queenstown-Lakes District Council, undated), the Wairarapa Coast (see Wairarapa Coastal Strategy Group 2004) and Waipa District (see Waipa District Council 2002).
- *The transfer of powers*, where the council transfers aspects or specific areas of landscape management to iwi authorities under section 33 of the RMA, enables a kaitiakitanga approach to landscape management to be implemented.

Methods to encourage community involvement

Community stewardship of the land and participation in landscape management initiatives can be important in the ongoing management and enhancement of landscapes. Such involvement can be facilitated through council support of appropriate individual and community activities. Examples of community initiatives include:

- *Landcare groups* which bring farmers, lifestyle residents and others together to jointly undertake initiatives aimed at sustainable land management. Activities can include revegetation, weed and pest control, and the protection of riparian areas and other important habitats.
- *Coast Care* programmes which mobilise communities to restore dunes systems along the coast. In the Bay of Plenty, the programme provides advice on reducing and repairing dune damage and also provides native dune plants, information brochures, fertilisers and building materials free.

Banks Peninsula Conservation Trust

The Banks Peninsula Conservation Trust was established in 2001 with the purpose of working with landowners to achieve voluntary protection of important landscape and coastal areas. The Banks Peninsula District Council provided seed funding for the Trust which has successfully raised additional funds from other sources. The Trust provides funding to landowners to fence areas of indigenous vegetation in exchange for agreements to covenant land, and has recently been authorized as a covenanting authority. It also promotes awareness of conservation issues and is researching sustainable farming practices.

Restricting future subdivision

There are several mechanisms which can be utilized to restrict future subdivision of a site on a permanent basis. These help to ensure that the carrying capacity of a landscape is not exceeded through future intensification of development. The mechanisms, which are described in detail in Appendix 3, include:

- *A restrictive covenant* which is registered on the certificate of title of the land in favour of adjacent or nearby land.
- *A memorandum of encumbrance*, which is a form of a mortgage registered on the title of the land, which creates a rent charge in favour of another party which is not enforced if the landowner complies with a covenant not to subdivide the land. This can be used when there is no suitable adjacent land to receive the benefit of a restrictive covenant.
- *A conservation covenant* under the Reserves Act 1977.

- *An open space covenant* under the Queen Elizabeth the Second National Trust Act 1977.
- *A condition of a resource consent* which restricts future subdivision or use of land and which is noted on the certificate of title through a consent notice.

CHAPTER 13

Consultation on Landscape Planning

Public and stakeholder consultation is a critical element of landscape planning. The potential contribution of consultation to the stages of landscape planning already discussed is summarised in Figure 15.

Some methods for identifying values attached to landscapes have been discussed in chapter 8. The starting point for public input on potential management techniques for landscapes is often the provision of analytical data. It is useful to begin consultation with expert opinion and evaluation for the public to consider, debate and respond to. However, technical information needs to be presented in a manner that is easy for people to understand and relate to. If this is done, members of the public may begin to look at their district's or region's environment with a new appreciation. It is also useful to take to the public a range of potential management techniques, so that they can see and comment on the appropriateness of options.

Presenting such material can be done through a range of methods including:

- Newsletters to the community
- Open Day sessions with the advisory team on hand to answer questions
- Workshops with facilitated workgroups
- Hui
- Public meetings
- A web site
- Local radio sessions.

The most appropriate communication medium will be that which maximises the community's involvement and ease of responding. Written submission forms can be quite foreign to many people and providing the opportunity to verbalise a response can be more helpful.

Consultation with tangata whenua is important in determining inherent values and issues and the relationships tangata whenua have with a particular resource. If iwi planning documents have been prepared, these may assist in assessing landscapes of importance to iwi. When such documents do not exist, the council may consider providing some targeted resourcing to iwi to facilitate the timely development of such a plan addressing landscape issues, to enable the outcomes to be incorporated into the landscape assessment process. When the time frame for iwi planning cannot realistically meet the statutory planning timetable, councils could consider incorporating iwi planning into future plan changes and developing non-statutory internal procedures to address matters of concern in the interim.

Figure 15: Consultation for landscape planning

LANDSCAPE PLANNING PROCESS		POTENTIAL PUBLIC INPUT
Vision		• Identify desired future state for landscapes
Landscape management issues	Contextual description	• Identify values associated with generic landscape types • Identify local heritage and cultural sites • Determine what 'sense of place' means to local communities • Identify relationships tangata whenua have with landscapes and the resources within them, and the values associated with these
	Landscape description	• Identify how people view and define landscapes
	Landscape characterisation	• Identify what landscape categories make sense to people within the district
	Landscape evaluation	• Identify preferences for different types of landscapes and specific valued landscapes • Relate preference to sense of place, cultural / heritage values, aesthetics and natural character • Identify the significance of landscapes to iwi
	Threats to important landscapes	• Identify landowner aspirations
Landscape management strategy	Landscape management objectives	• Identify important landscapes and their desired future environmental state
	Landscape management policies	• Identify the acceptability to the community, iwi and landowners of different approaches to achieve the objectives • Assess the costs, benefits, efficiency, and effectiveness of different approaches
Implementation mechanisms		• Identify the acceptability to the community, iwi and landowners of different methods • Assess the costs, benefits, efficiency and effectiveness of different methods

Consultation for landscape planning is not an easy task because such planning ultimately affects the use of land within the district. Issues as to what landscapes are important, and why and how they should be managed, can be contentious. It can be personally challenging for a council planner to face high levels of conflict. If conflict between interest groups is not well managed, it can become heightened and make it difficult for the council to implement an effective planning solution.

Ways of dealing with conflictual situations include:

- Team up council officers to engage in the process. A person can face considerable personal stress if left to face hostile groups alone.
- Provide an internal and/or external support structure for officers engaged in the planning process. This may include a small team of senior officers within council and/or consultants outside council who peer review process and substance matters and help strategise to solve difficulties as they arise.
- Ensure there is sufficient budget to undertake an adequate consultation process.
- Look for allies to support the process, including those amongst land owners and developers, environmental groups and other statutory bodies such as the regional council and Department of Conservation.
- Where there are high levels of conflict between groups, meet with them separately to begin with, and map out a process to bring them together.
- Aim for meetings where different parties listen and gain an appreciation of each others' interests and concerns.
- Use an independent facilitator for stakeholder meetings.

CHAPTER 14

Monitoring Landscape Outcomes

A council monitoring programme measures the extent to which the council objectives for the management of important landscapes are being met. Key factors which might be measured include:

- Levels of development in coastal and other key natural environments
- Levels of development in rural landscapes that have been highly valued
- Levels of native bush retention and revegetation
- The integrity of key natural features
- The integrity of historic and cultural features.

Monitoring *pressures* on landscapes can provide some indication of likely outcomes, although it will not provide information on what the actual outcomes have been. Pressures could be measured regularly through spatially analysed data on the number of resource consents in important landscapes granted for:

- Earthworks
- Construction of buildings
- Vegetation removal
- Planting of exotic species
- Harvesting of trees
- Subdivision
- Land drainage

In addition, the following could be measured:

- The number of building permits issued, under the Building Act 1991, in important landscapes
- The number of authorities issued, under the Historic Places Act 1993, permitting the destruction of archeological sites in important cultural landscapes
- The extent to which landscape issues within the district are addressed in iwi planning documents.

Monitoring *enhancement* mechanisms can provide some measure of environmental gains. Useful information to collect spatially could include:

- Additional hectares planted in indigenous vegetation
- Area of land and riparian margins protected from development through covenants

- Areas of indigenous vegetation protected from stock by fencing
- Areas where invasive pests and weeds are eradicated or well managed.

Monitoring the *outcomes* for important landscapes may require periodic re-assessment of sample landscapes or, over longer time frames, complete re-assessment of the district at regular intervals to identify change and landscapes issues that need to be addressed. The assessment process is therefore critical to effective long-term monitoring

CHAPTER 15

Assessing the Costs and Benefits

When considering incorporating landscape management provisions in a district plan, the council is required under section 32 of the RMA to evaluate the costs and benefits of the approach to be taken and to prepare a report summarizing the evaluation. The evaluation must include examining:

- The extent to which each objective is the most appropriate way of achieving the purpose of the Act, that is to promote the sustainable management of natural and physical resources
- Whether the policies, rules and other methods are the most appropriate for achieving the objectives, having regard to their efficiency and effectiveness

The evaluation needs to take into account the benefits and costs of the policies, rules and other methods proposed to be adopted and the risk of acting or not acting if there is uncertain or insufficient information about the subject matter.

Guidance prepared by the Ministry for the Environment on how to use section 32 of the RMA (Ministry for the Environment 2000b) indicates that the efficiency of the method adopted is assessed by the degree to which the environmental benefits gained through adopting the method outweigh the net social and economic costs. Change often results in winners and losers, and the implementation of a landscape management strategy is likely to obtain greater community acceptability the more evenly the costs of its implementation are spread across the community who will benefit from improved landscape management.

Considerations of costs and benefits also apply to determining the scale of effort that a council will deploy in developing a landscape management strategy. This will be affected by the resources of the council and the significance of landscape issues within the region or district. Considerable costs savings may be possible through developing joint initiatives with other councils within the region, to undertake joint landscape investigations and share the costs. In addition, as discussed in chapter 8, a 'rolling' landscape assessment can be undertaken, with assessment work being initially focused on areas where landscapes are under greatest threat and then being progressively extended to include additional areas as funds become available.

CHAPTER 16

Conclusions

Effective planning for landscapes is not an easy task. It requires considerable effort in both identifying which landscapes are important within the district and in developing a management strategy to protect them. It also requires a well-designed public and iwi consultation process to ensure that the landscape assessment process reflects what people within the district value and that the planning mechanisms developed to protect those values are well understood and supported. Effective planning depends on the provision of adequate time and resources.

Getting it right is of considerable importance to districts and regions. Natural and cultural landscapes not only make a significant contribution to the quality of life of people living within an area, they also play important economic, ecological and cultural roles and are important to the community's future long-term well-being.

Appendices

APPENDIX 1

Kaitiakitanga

The following extract is from the Aquaculture Steering Group publication *He Maara Mataitai*.

Kaitiakitanga contains many elements that can be described as:

- Mahi tapu – god given and handed down through our tipuna
- Founded in whakapapa - the relationship between everything and everybody in the natural world – there is no distinction between people and their environment
- Exercised on behalf of, and for the benefit of all who are related through whakapapa
- A set of inalienable responsibilities, duties and obligations that are not able to be delegated or abrogated
- A web of obligations: to the taonga, to the atua and to ourselves and our uri. Kaitiaki have a responsibility to provide for everyone and ensure everyone benefits
- Independent of ‘ownership’ in a European sense. Kaitiaki responsibilities are independent of others who hold ‘ownership’ or use rights under the law.
- Seamless and all encompassing – making no distinction between moana and whenua
- Given effect at whānau and hapu level
- Expressed in ways that are appropriate to the place and to the circumstances, according to tikanga
- Wider and more complex than existing legal definitions
- Given practical effect by:
 - exercising control over access to resources
 - sharing the benefits of the use of those resources
- Enabled through rangatiratanga, which includes the authority that is needed to control access to and use of resources, and to determine how the benefits will be shared. This means that it can be expressed in part through the concepts of ‘ownership’, ‘property’, ‘title’ or ‘stewardship’ - however it is much wider than any of these.

APPENDIX 2

Conditions of Engagement of the Landscape Architect

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CONDITIONS OF ENGAGEMENT OF THE LANDSCAPE ARCHITECT

1. Introduction

- 1.1 Corporate members of the New Zealand Institute of Landscape Architects (Registered Members - RNZILA, Associates - ANZILA, and Fellows - FNZILA) aim to provide the highest standard of professional service in the application of the arts and sciences to the planning, design and management of the landscape.
- 1.2 This section defines typical responsibilities of the landscape architect and the client. In this regard it is relevant to note that corporate members of the New Zealand Institute of Landscape Architects are governed by the Rules of the Institute and its Code of Conduct. The landscape architect's obligations under the code are an important safeguard to the client. (See section 6 for more information).

2. Definitions

For the purposes of these documents the following definitions and meanings apply:

- 2.1 THE LANDSCAPE ARCHITECT is the individual, or partnership, or corporate practice, or consortium engaged to provide services as hereinafter described and as agreed with the client.
- 2.2 THE CLIENT is the individual or organisation directly engaging and paying the landscape architect.
- 2.3 SECONDARY CONSULTANTS include civil and structural engineers, sociologists, planners, ecologists, resource managers, quantity surveyors, land surveyors, building architects, specialised graphic design or software consultants, iwi consultation specialists and consultants of other disciplines who may be engaged to assist the landscape architect by contributing specialist skills to a project.

3. Responsibilities and authority of the Landscape Architect:

Service:

- 3.1 The landscape architect shall provide services as agreed in writing with the client. In the performance of these services, the landscape architect shall exercise reasonable skill, care and diligence.

- Stages of service: 3.2 The landscape architect shall not initiate or proceed with any stage of the services without the authority of the client.
- Secondary consultants: 3.3 With the approval of the client the landscape architect shall appoint secondary consultants according to the landscape architect's assessment of the need for such services. The landscape architect shall direct and co-ordinate the services of all secondary consultants and integrate their work where applicable into the contract documentation and administration. Secondary consultants appointed by the landscape architect shall be responsible to and paid by the landscape architect. These fees will be charged to the client in addition to the landscape architect's fee.
- Secondary consultants appointed directly by the client shall be responsible to and paid by the client. The landscape architect's responsibility to the client in respect of such consultants shall be limited to instructing them and co-ordinating their services, or by agreement may include assessing their services for payment.
- Specialist contractors and suppliers: 3.4 Where the client directs that specialist contractors and/or suppliers design and/or provide particular parts of the project, the landscape architect shall be responsible only for the integration of such parts into the design of the project as a whole. A specialist contractor, sub-contractor or supplier who is to be employed by the client to design any part of the project may be nominated by either the landscape architect or the client, subject to acceptance by the other party. The client will hold such contractor, sub-contractor or supplier, and not the landscape architect, responsible for the competence, proper execution and performance of the work thereby entrusted to that contractor, sub-contractor or supplier. The landscape architect will have authority to co-ordinate and integrate such work into the site as a whole.

Site representation for inspection:

3.5 Requirements of a project may necessitate more extensive inspection of the work than is covered by the basic agreement. In these circumstances the landscape architect may recommend more frequent inspections or that the client appoint full time site representation such as one or more site landscape architects, resident engineers or clerks of works. Such appointments shall be made by the landscape architect on behalf of and with the approval of the client.

Construction responsibility:

3.6 Unless otherwise agreed the landscape architect shall not be responsible for the construction means, methods, techniques, programme, sequences or procedures adopted by the contractor responsible for the work, nor for safety precautions employed as required by the Health and Safety Employment Act 1993, or the acts or omissions of the contractor or any other person performing any of the work, or for the failure of any of them to carry out the work in accordance with the contract documents.

Limitation of liability:

3.7 Liability in respect of a claim or claims, whether in contract, tort, or otherwise, for damage arising out of the engagement and services of the landscape architect for a project is limited to **either** an aggregate amount of \$250,000 or the landscape architect's professional indemnity insurance cover. This carries no implication that the landscape architect is covered by professional indemnity insurance.

Validity of time span for offer of services:

3.8 Any offer of services is only valid for 28 days unless otherwise specified.

Project estimates:

3.9 Estimates prepared by the landscape architect represent the landscape architect's best judgement. The landscape architect cannot and does not warrant or represent that cost or time will not vary from the estimates.

Death or incapacity of landscape architect:

3.10 Should the landscape architect through death or incapacity be unable to provide the agreed services, the appointment will thereby be terminated. In such an event, the client may, on payment or tender of all outstanding fees

and expenses, make full use of reports, drawings or other documents prepared by the landscape architect in accordance with and for use under the agreement, but only for the purpose for which they were prepared.

4. Responsibilities and authority of the client:

Payment:

- 4.1 The client shall pay all fees and disbursements due to the landscape architect, in accordance with one or more methods detailed in the document 'Payment for services of the landscape architect'. In summary, charges may be assessed by way of a:

Percentage charge: a percentage of the total cost of the works;

Time charge: periodic charges based on time expended by the landscape architect in carrying out the work;

Lump sum: a predetermined lump sum charge.

Charges may determined on one of the three bases set out above or a combination of them, as agreed to be appropriate to the nature of the project and the needs of the client. The basis of charges agreed with the client should then be recorded, either in an Agreement, or by way of an exchange of letters.

Unless otherwise agreed, charges for any secondary consultants such as engineers, ecologists, planners or quantity surveyors, for example, are separate. Interest at the landscape architect's current bank overdraft rate plus 2% per annum may be charged on all monies due and not paid within 30 days of rendering an account.

Client's instructions:

- 4.2 The client shall provide the landscape architect with instructions adequate to define the basic requirements and objectives of the project, including programme and budget.

Client's brief:

- 4.3 The client shall provide the landscape architect with a detailed brief indicating all the specific requirements or goals of the project. When no brief is provided or the information is considered to be inadequate the landscape architect may assist in the preparation of

- the brief or the assembly of supplementary information.
- Client's authority: 4.4 The client authorises the landscape architect to act as the client's agent in such matters as are set out or implied in their agreement and as set out or implied in the particular form of the contract or contracts adopted for the project.
- Provision of information: 4.5 The client shall be responsible for the cost of providing all legal and survey information and other particulars concerning the site, and/or adjoining sites, which may include existing structures and features, geology, hydrology, soils, sub-surface condition, and the provision of any legal or insurance advice recommended by the landscape architect as being necessary for the protection of the client's interest. If the landscape architect is required to obtain further information or seek clarification of such information, the client shall reimburse the landscape architect for the additional work involved. The client shall be responsible for the accuracy and validity of any information provided by him for the use of the landscape architect.
- Information and decisions from client: 4.6 The client shall consider the landscape architect's proposals and requests for information, and shall give decisions and provide all required information within a reasonable time.
- Client's representative: 4.7 A client organisation shall nominate in writing a person with authority to issue instructions to the landscape architect in respect of the project.
- Instructions to the contractor: 4.8 Where any contract is being administered by the landscape architect, the landscape architect shall give all instructions to the contractor. If the client wishes to make any alterations to the contract or to give instructions to the contractor, this shall be done only through the landscape architect.
- Indemnity insurance: 4.9 The client should assess what cover the client requires for protection against loss caused by negligence or other default by the landscape

architect or consultants appointed by the landscape architect. Should the client require the landscape architect to have professional indemnity insurance cover the amount thereof should be agreed between the parties and the landscape architect shall provide proof of or obtain the required cover. All costs to extend cover above \$250,000 shall be chargeable to the client.

5. General responsibilities and authority:

- | | |
|-------------------------|--|
| Assignment: | 5.1 Neither the landscape architect nor the client may assign the whole or any part of their duties without the other's written consent. |
| Termination of service: | 5.2 Any agreement between client and landscape architect may be terminated on the expiration of 28 days' notice given in writing. |
| Ownership of documents: | 5.3 The drawings, specifications and other documents provided by the landscape architect are the property of the landscape architect whether the work for which they are prepared is executed or not. Copyright in all drawings specifications and other documents and in the work executed from them remains the property of the landscape architect. |

The client shall be licensed, on payment of all charges due to the landscape architect, to use the documents only for the specific purpose for which they were prepared. The client may reproduce the design by executing the project on the particular site for which it was designed but may not use the documents for other works except by agreement with the landscape architect.

Data and factual information collected by the landscape architect and paid for by the client shall be the property of the client after full payment of all charges.

The landscape architect accepts no responsibility for unauthorised use of drawings. Where the landscape architect's services are limited to preparing submissions for planning permission the client is not licensed to the copyright of any design forming the basis of that planning

permission unless expressly agreed with the landscape architect. The landscape architect may terminate this agreement if the client breaches the obligation to pay.

Errors and omissions: 5.4 Clerical errors or omissions whether in computation or otherwise in invoices, estimates and drawings shall be subject to correction.

Interpretation: 5.5 In the event that any difference shall arise as to the interpretation of this document, such matter shall be submitted to the President of the New Zealand Institute of Landscape Architects or his/her nominee to resolve through mediation between the parties. If resolution is not reached through mediation, then the dispute shall be referred to arbitration in accordance with the provisions of the New Zealand Arbitration Act 1908 and any amendments thereto.

Confidentiality: 5.6 Commercially sensitive information obtained by either party during or in the context of the professional engagement shall be treated as confidential. Such information shall not be released without the written consent of the other party.

6. Extracts from the Code of Conduct

Introduction 6.1 Ethical, responsible, professional behaviour toward the public, other members of the institute, the profession, clients, contractors, and other involved consultants results not from rules but from a positive attitude to these relationships. The most effective code of conduct is to be found in a positive, consistent, and personal commitment to ethical actions in the practice of their profession by members of the institute.

Corporate members' commitment 6.2 In particular corporate members of the institute are committed to the following:

- a) The landscape architect shall have a primary responsibility to seek to reconcile human needs in harmony with the natural environment and its systems.
- b) The landscape architect shall seek to provide the highest standard of professional service.

- c) The landscape architect shall conduct his or her professional affairs with creativity, integrity, and competence.
- d) The landscape architect shall immediately declare any personal interests that may be in conflict with a fully professional service.
- e) The landscape architect shall be honest and fair in all dealings and communications.
- f) The landscape architect shall act always in a manner which brings credit to the profession.

Complaints from the
public against a
corporate member:

- 6.3 Complaints from the public against a member are dealt with in the first instance by the branch Complaints Committee. This committee comprises the Chairperson of the local branch of the Institute or his/her nominee, and two lay persons of standing in the community.

Complaints procedure:

- 6.4 A complaint in writing from a member of the public is to be referred to the Chairperson (or his/her nominee) who shall notify the Secretary of the Institute and other branch Complaints Committee members.

The process followed will generally give emphasis to informality and to resolving the complaint between the parties satisfactorily and promptly. Evidence from both the member(s) and complainant(s) will usually be heard. Initially, the branch Chairperson or nominee will investigate the matter and act in the capacity of an informal mediator.

Committee meeting:

- 6.5 If the matter is not resolved through mediation, the Chairperson shall request the complainant and respondent to produce evidence in writing within a specified time - but not less than 14 days - to be considered by the branch Complaints Committee. The branch Complaints Committee will then meet to consider the complaint and may ask the parties to be present at an informal hearing. After this hearing the Committee will decide on what action should be recommended to remedy the situation. The Committee does not have the

- power to impose a fine, award costs, suspend or censure members. Its role is to resolve the issue between the parties in an informal way.
- Inform executive: 6.6. The Secretary of the NZILA shall be informed of the result of this process. Should the secretary not receive advice of a satisfactory settlement within one month of being informed of the original complaint, he/she will contact the branch Chairperson to ensure that the matter is being attended to as expeditiously as possible.
- Satisfaction with outcome: 6.7 In the event of a complainant not being satisfied with the outcome of this investigation, he/she may, within one month of being advised of the decision of the branch Complaints Committee ask for the Executive of the NZILA to resolve the matter through the Institute's Disciplinary Committee. In such a situation, the branch Complaints Committee shall forward a resume of its actions and recommendations, together with any other relevant documentary evidence, to the NZILA secretary within 7 days of the request for that information.
- Disciplinary committee: 6.8 If the corporate member's actions appear to be in breach of the Institute Code of Conduct, then the matter will be dealt with by the Disciplinary Committee of the NZILA.
- This committee comprises the President of the NZILA as chairperson, two corporate members, two lay persons of standing in the community, and the Institute's legal advisor.
- The committee will hear any such complaints and recommend disciplinary action as provided for in the constitution.

APPENDIX 3

Legal Mechanisms to Control Future Subdivision

TO: Environmental Defence Society
FROM: Russell McVeagh
DATE: 21 April 2005
SUBJECT: Legal Mechanisms To Control Future Subdivision

1. Introduction

- 1.1 We have been requested by the Environmental Defence Society (“EDS”) to provide a summary of various legal mechanisms which may be available to parties to limit intensive development by controlling or preventing the future subdivision or development of land on a permanent basis. In doing so, we have been asked to consider the issue from the perspective of:
 - (a) landowners;
 - (b) local consent authorities; and
 - (c) public interest organisations.
- 1.2 In relation to each of these parties, we set out below the possible mechanisms available. When considering which mechanism is the most appropriate, the specific situation needs to be assessed. It is recommended that legal advice be obtained to ensure an effective mechanism is used.
- 1.3 This document is merely a summary of the existing available mechanisms, without any consideration of the merits and reasonableness of the mechanisms in any particular case and other than as a voluntary measure. As EDS is aware, we act for a number of landowners and developers and reserve all rights to represent them in challenging or opposing any conditions or mechanisms incorporating controls.

2. Landowners

- 2.1 The following mechanisms may be available to a landowner to restrict subdivision or limit the number of dwellings per site:
 - (a) restrictive covenant;
 - (b) memorandum of encumbrance;
 - (c) conservation covenant;
 - (d) open space covenant; and
 - (e) condition of consent.

- 2.2 Most of these options involve a third party, such as a council, a public interest organisation, or a neighbour.

Restrictive covenant

- 2.3 An agreement known as a “restrictive covenant” can be entered into between the landowner and a third party whereby the landowner agrees that, in respect of its land, no further subdivision will be undertaken in the future. A restrictive covenant, once registered on the certificate of title of land, has the ability to bind successors in title to the land and therefore ensure that successors are aware of and comply with such an agreement. Under New Zealand law it is not clear whether restrictive covenants “in gross” (ie not attached to another piece of land) are enforceable. Therefore, in order to ensure that a restrictive covenant is binding on successors, the critical requirement is that the restrictive covenant benefits adjacent or nearby land. The owner of such adjacent or nearby land will need to be the “third party” with whom the landowner would be contracting.
- 2.4 If the landowner seeks to subdivide or use its land contrary to the restrictive covenant, the other party to the covenant can apply to the Courts for an injunction, on the basis of the covenant, to prevent the landowner subdividing.
- 2.5 In terms of limitations, a restrictive covenant which prevents future subdivision can be modified or extinguished by agreement between the parties. In addition, the landowner may make an application individually to the District Court in order to have the restrictive covenant modified or extinguished. The Court has the discretion to modify or extinguish the covenant where certain criteria are met. In general, these criteria relate to a change in circumstances from the time when the covenant was created.
- 2.6 Agreement between the parties is essential to this mechanism. Once it is obtained, a restrictive covenant should be an easy and useful mechanism to put in place.

Memorandum of encumbrance

- 2.7 If a landowner wishes to prevent future subdivision of their land by way of entering into a restrictive covenant, but there is no suitable adjacent land available to receive the benefit of that covenant, a memorandum of encumbrance can be used to note the existence of the covenant and to bind future purchasers of the land. A memorandum of encumbrance is a form of mortgage, but can be used as an indirect method of making covenants binding on subsequent owners of the encumbered land when registered against the certificates of title to that land.
- 2.8 Where this method is used, the memorandum of encumbrance creates a rent charge in favour of another party which is not to be enforced if the landowner complies with certain covenants, ie not to subdivide the land. The memorandum of encumbrance is then registered against the land to provide subsequent owners of the land with notice of the agreement. Subsequent owners are bound to comply with the obligations set out in

the encumbrance under section 104 of the Property Law Act 1952. If a landowner then attempts to subdivide its land contrary to the agreement, the other party to the encumbrance can apply to the Courts to have the agreement enforced, for example, by seeking an injunction or specific performance to stop the subdivision proceeding.

- 2.9 A memorandum of encumbrance can be discharged with the agreement of the parties. Also, when using a rent charge, it is usually limited to the life of the other party and consideration needs to be given to which party will provide long term protection against subdivision, eg the use of an organisation such as a Council or a government body would provide more security than an individual.
- 2.10 This mechanism, while helpful when a restrictive covenant cannot be used, needs to be carefully drafted in order to provide the protection it is intended to establish.

Conservation covenant

- 2.11 A landowner may voluntarily enter into a conservation covenant with a council, the Minister of Conservation or another body approved by the Minister in order to protect its land from future subdivision.
- 2.12 Conservation covenants, which are created under the Reserves Act 1977, can be used to preserve the natural environment or landscape amenity, which arguably includes restricting subdivision. This must be considered in light of the overarching purpose of the Reserves Act 1977, which involves an element of use and enjoyment by the public. The restriction of subdivision of land is arguably not consistent with this purpose and may not have been intended to be the subject of a conservation covenant. However, in at least one case a conservation covenant has been used to protect land, and its conservation value, with no specific reference to public use or enjoyment (*Rolleston v Christchurch City Council*, C46/2002). This suggests that the purpose of a conservation covenant may be as broad as the implied public benefit of preserving the natural amenity of the land.
- 2.13 If a conservation covenant is created, it will be registered on the certificate of title for the land, and will accordingly create a long term interest in the land that will bind subsequent owners.
- 2.14 A conservation covenant needs to set out in detail the respective rights of the landowner and the public. However, it can also be drafted to provide flexibility in terms of the ability to amend it in the future, and whether it is to last for a specific term or in perpetuity.
- 2.15 If it can be established that a conservation covenant is consistent with the purpose of the Reserves Act 1977, then it is a useful and flexible mechanism for restricting the use of private land.

Open space covenant

- 2.16 This mechanism has similar features to a conservation covenant. Open space covenants can be entered into voluntarily by a landowner with the

Board of Directors of the Queen Elizabeth the Second National Trust, or with a Minister of the Crown or a local authority by delegated authority, under the Queen Elizabeth the Second National Trust Act 1977. The effect is to require land to be maintained as “open space” - ie an area that serves to preserve or to facilitate the preservation of any landscape of aesthetic, scenic or social interest value.

- 2.17 Like a conservation covenant, an open space covenant can have effect in perpetuity or for a specified term, will be registered against the landowner's title, will constitute an interest in the land and will bind future owners for its term.
- 2.18 As with the Reserves Act 1977, the Queen Elizabeth the Second National Trust Act 1977 contemplates an element of use and enjoyment by the public. Its purpose is to establish a national trust to encourage and promote the provision, protection and enhancement of open space for the benefit and enjoyment of the people of New Zealand.
- 2.19 An open space covenant is similar to a conservation covenant in that if it can be established that it is being used for the purposes of the relevant Act, in this case the Queen Elizabeth the Second National Trust Act 1977, it provides a flexible mechanism for restricting the use of private land.

Condition of consent

- 2.20 Sometimes a landowner applies for a subdivision or resource consent for its land and this process can be used to impose conditions of consent which control the use of the land.
- 2.21 A landowner can agree to a condition of consent which restricts the future subdivision or use of land. However, such a condition is able to be the subject of a future application to have it varied or removed, or a landowner could later challenge the validity of the condition.
- 2.22 A condition of resource consent will be valid provided that:
 - (a) the condition is within the jurisdiction of the consenting authority;
 - (b) a reasonable body could have imposed the condition;
 - (c) the condition refers to matters relevant or reasonably capable of being regarded as relevant to the implementation of planning policy;
 - (d) the condition relates to the purpose of the RMA; and
 - (e) the condition is reasonable.
- 2.23 In *Upper Clutha Environment Society Incorporated v Queenstown Lakes District Council* (C112/98), the Environment Court considered that any restrictions forbidding subdivision are properly matters for a district plan or for a volunteered covenant by the landowner, and deleted a condition of consent that prohibited further subdivision. This difficulty does not need to arise where a landowner accepts the condition.
- 2.24 Under section 221 of the RMA, where a subdivision consent is granted subject to a condition to be complied with on a continuing basis by the

subdividing owner and subsequent owners, the territorial authority issues a consent notice specifying any such condition. Every consent notice is deemed to be an instrument creating an interest in the land which may be registered, and is deemed to be a covenant running with the land once registered (thereby binding subsequent owners).

- 2.25 If a landowner agrees to a condition of subdivision consent preventing future subdivision, the consent authority can issue a consent notice to this effect, which can be registered on the certificate of title. This is an effective technique, subject to the point made earlier that in the future, the landowner could apply to vary or delete the condition and remove the consent notice.

3. Local authorities

- 3.1 A local authority can seek to become involved in all of the mechanisms set out above in section 2.
- 3.2 If the landowner is reluctant to restrict future subdivision or use of the land, the only mechanism a Council already processing a consent application has is to try to impose a condition of consent (as discussed in section 2 above) that prohibits subdivision, or which requires a landowner to enter into a restrictive covenant or memorandum of encumbrance with the Council.
- 3.3 The Courts have shown some reluctance to accept conditions that restrict future subdivision (see the *Upper Clutha* decision referred to above). Notwithstanding that case, on the facts, if the level of intensity of the development meant that the property is at the threshold of acceptability, such that there are concerns over cumulative effects from any additional development, then there might be a sufficient basis under the RMA to impose such a condition if it is reasonable and relates to the purpose of the RMA. After all, when a Council is concerned about development in an area and introduces a plan change to reduce the level of development (which is not unusual), that effectively does much the same thing by taking away future development rights. Amendments proposed by plan changes have to be reasonable and supported under the RMA as well. In the right situation the Court may accept such a condition and Councils should not consider it to be completely unavailable as a mechanism.
- 3.4 Apart from a condition of consent, the only other current mechanism available, if there is a landowner who is reluctant to agree to voluntary restrictions, is to introduce a plan change or variation so that there is greater clarity over future development rights. That new planning framework may then be in place by the time a further application for subdivision or more intensive land use is made.

4. Public interest organisations

- 4.1 A public interest organisation cannot by itself prevent the future subdivision of privately-owned land by using any of the mechanisms outlined above. However, if a landowner voluntarily wishes to prevent the future subdivision of its land, a public organisation can become involved in the same ways as a consent authority, namely:
- (a) as a party to a conservation covenant (if consistent with the purpose of the Reserves Act 1977); or
 - (b) as a party to a memorandum of encumbrance; or
 - (c) as a party to a restrictive covenant, if the public interest organisation owns the adjacent or nearby land which benefits from the covenant.

5. Conclusion

- 5.1 When considering which mechanism is the most appropriate for each respective party, careful consideration will need to be given to the limitations of each mechanism and its robustness when challenged.
- 5.2 There are several mechanisms available and potentially suitable on a voluntary basis which may well be achievable if a landowner is keen to obtain an approval and is willing to forego future rights.
- 5.3 In the case of a reluctant landowner, zoning restrictions and possibly a condition imposed on a consent might achieve the required result if used in the appropriate situation.

APPENDIX 4

Queenstown-Lakes District Plan Assessment Criteria

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5.4 Resource Consents - Assessment Matters - Rural Zones

5.4.1 General

- (i) The following Assessment Matters are methods or matters included in the District Plan, in order to enable the Council to implement the Plan's policies and fulfil its functions and duties under the Act.
- (ii) In considering resource consents for land use activities, in addition to the applicable provisions of the Act, the Council shall apply the relevant Assessment Matters set out in Clause 5.4.2 below. Except that assessment matters in 5.4.2(i)-(iv) do not apply to activities requiring resource consent in Ski Area Sub-zones.
- (iii) In the case of Controlled and Discretionary Activities, where the exercise of the Council's discretion is restricted to the matter(s) specified in a particular standard(s) only, the assessment matters taken into account shall only be those relevant to that/these standard(s).
- (iv) In the case of Controlled Activities, the assessment matters shall only apply in respect to conditions that may be imposed on a consent.
- (v) Where an activity is a Discretionary Activity because it does not comply with one or more relevant Site Standards, but is also specified as a Controlled Activity in respect of other matter(s), the Council shall also apply the relevant assessment matters for the Controlled Activity when considering the imposition of conditions on any consent to the discretionary activity.

5.4.2 Assessment Matters

In considering whether or not to grant consent or impose conditions, the Council shall in addition to considering any other relevant matters apply the following terms and criteria:

5.4.2.1 Landscape Assessment Criteria - Process

There are three steps in applying these assessment criteria. First, the analysis of the site and surrounding landscape; secondly determination of the appropriate landscape category; thirdly the application of the assessment matters. For the purpose of these assessment criteria, the term "proposed development" includes any subdivision, identification of building platforms, any building and associated activities such as roading, earthworks, landscaping, planting and boundaries.

Step 1 - Analysis of the Site and Surrounding Landscape

An analysis of the site and surrounding landscape is necessary for two reasons. Firstly it will provide the necessary information for determining a site's ability to absorb development including the basis for determining the compatibility of the proposed development with both the site and the surrounding landscape. Secondly it is an important step in the determination of a landscape category - i.e. whether the proposed site falls within an outstanding natural, visual amenity or other rural landscape.

An analysis of the site must include a description of those existing qualities and characteristics (both negative and positive), such as vegetation, topography, aspect, visibility, natural features, relevant ecological systems and land use.

An analysis of the surrounding landscape must include natural science factors (the geological, topographical, ecological and dynamic components in of the landscape), aesthetic values (including memorability and naturalness), expressiveness and legibility (how obviously the landscape demonstrates the formative processes leading to it), transient values (such as the occasional presence of wildlife, or its values at certain times of the day or of the year), value of the landscape to Tangata Whenua and its historical associations.

Step 2 - Determination of Landscape Category

This step is important as it determines which district wide objectives, policies, definitions and assessment matters are given weight in making a decision on a resource consent application.

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The Council shall consider the matters referred to in Step 1 above, and any other relevant matter, in the context of the broad description of the three landscape categories in Part 4.2.4 of this Plan, and shall determine what category of landscape applies to the site subject to the application.

In making this determination the Council, shall consider:

- (a) to the extent appropriate under the circumstances, both the land subject to the consent application and the wider landscape within which that land is situated; and
- (b) the landscape maps in Appendix 8.

Step 3 - Application of the Assessment Matters

Once the Council has determined which landscape category the proposed development falls within, each resource consent application will then be considered:

First, with respect to the prescribed assessment criteria set out in Rule 5.4.2.2 of this section;

Secondly, recognising and providing for the reasons for making the activity discretionary (see para 1.5.3(iii) of the plan [p1/3]) and a general assessment of the frequency with which appropriate sites for development will be found in the locality.

5.4.2.2 Assessment Matters

- (1) **Outstanding Natural Landscapes (Wakatipu Basin) and Outstanding Natural Features – District wide.**

These assessment matters are to be stringently applied to the effect that successful applications for resource consent will be exceptional cases.

- (a) Effects on openness of landscape

In considering whether the proposed development will maintain the openness of those outstanding natural landscapes and features which

have an open character at present when viewed from public roads and other public places, the following matters shall be taken into account:

- (i) whether the subject land is within a broadly visible expanse of open landscape when viewed from any public road or public place;
- (ii) whether, and the extent to which, the proposed development is likely to adversely affect open space values with respect to the site and surrounding landscape;
- (iii) whether the site is defined by natural elements such as topography and/or vegetation which may contain and mitigate any adverse effects associated with the development.

- (b) Visibility of development

In considering the potential visibility of the proposed development and whether the adverse visual effects are minor, the Council shall be satisfied that:

- (i) the proposed development will not be visible or will be reasonably difficult to see when viewed from public roads and other public places; and
- (ii) the proposed development will not be visually prominent such that it dominates or detracts from public or private views otherwise characterised by natural landscapes; and
- (iii) the proposal can be appropriately screened or hidden from view by any proposed form of artificial screening, being limited to earthworks and/or new planting which is appropriate in the landscape, in accordance with Policy 4.2.5.11 (b).
- (iv) any artificial screening or other mitigation will detract from those existing natural patterns and processes within the site and surrounding landscape or otherwise adversely affect the natural landscape character; and

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- (v) the proposed development is not likely to adversely affect the appreciation of landscape values of the wider landscape (not just the immediate landscape).
- (vi) the proposal does not reduce neighbours' amenities significantly.
- (c) Visual coherence and integrity of landscape

In considering whether the proposed development will adversely affect the visual coherence and integrity of the landscape and whether these effects are minor, the Council must be satisfied that:

 - (i) structures will not be located where they will break the line and form of any ridges, hills and any prominent slopes;
 - (ii) any proposed roads, earthworks and landscaping will not affect the naturalness of the landscape;
 - (iii) any proposed new boundaries will not give rise to artificial or unnatural lines or otherwise adversely (such as planting and fence lines) affect the natural form of the landscape.
- (d) Nature Conservation Values

In considering whether the proposed development will adversely affect nature conservation values and whether these effects are minor with respect to any ecological systems and other nature conservation values, the Council must be satisfied that:

 - (i) the area affected by the development proposed in the application does not contain any indigenous ecosystems including indigenous vegetation, wildlife habitats and wetlands or geological or geomorphological feature of significant value;
 - (ii) the development proposed will have any adverse effects that are more than minor on these indigenous ecosystems and/or geological or geomorphological feature of significant value;
- (ii) the development proposed will avoid the establishment of introduced vegetation that have a high potential to spread and naturalise (such as wilding pines or other noxious species).
- (e) Cumulative effects of development on the landscape

In considering the potential adverse cumulative effects of the proposed development on the natural landscape with particular regard to any adverse effects on the wider values of the outstanding natural landscape or feature will be no more than minor, taking into account:

 - (i) whether and to what extent existing and potential development (ie. existing resource consent or zoning) may already have compromised the visual coherence and naturalness of the landscape;
 - (ii) where development has occurred, whether further development is likely to lead to further degradation of natural values or domestication of the landscape or feature such that the existing development and/or land use represents a threshold with respect to the site's ability to absorb further change;
 - (iii) whether, and to what extent the proposed development will result in the introduction of elements which are inconsistent with the natural character of the site and surrounding landscape;
 - (iv) whether these elements in (iii) above will further compromise the existing natural character of the landscape either visually or ecologically by exacerbating existing and potential adverse effects;
 - (v) where development has occurred or there is potential for development to occur (ie. existing resource consent or zoning), whether further development is likely to lead to further degradation of natural values or domestication of the landscape or feature.
- (f) Positive Effects

In considering whether there are any positive effects in relation to remedying or mitigating the continuing adverse effects of past

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inappropriate subdivision and/or development, the following matters shall be taken into account:

- (i) whether the proposed activity will protect, maintain or enhance any of the ecosystems or features identified in (f) above which has been compromised by past subdivision and/or development;
- (ii) whether the proposed activity provides for the retention and/or re-establishment of native vegetation and their appropriate management, particularly where native revegetation has been cleared or otherwise compromised as a result of past subdivision and/or development;
- (iii) whether the proposed development provides an opportunity to protect open space from further development which is inconsistent with preserving a natural open landscape, particularly where open space has been compromised by past subdivision and/or development;
- (iv) whether the proposed development provides an opportunity to remedy or mitigate existing and potential adverse effects (ie, structures or development anticipated by existing resource consents) by modifying, including mitigation, or removing existing structures or developments; and/or surrendering any existing resource consents;

(g) Other Matters

In addition to consideration of the positive effects (i) - (iv) in (f) above, the following matters shall be taken into account, but considered with respect to those matters listed in (a) to (e) above:

- (v) the ability to take esplanade reserves to protect the natural character and nature conservation values around the margins of any lake, river, wetland or stream within the subject site;
- (vi) the use of restrictive covenants, easements, consent notices or other legal instruments otherwise necessary to realise those positive effects referred to in (f) (i) - (v) above and/or to ensure that

the potential for future effects, particularly cumulative effects, are avoided.

(2) Outstanding Natural Landscapes (District Wide)

- (a) Potential of the landscape to absorb development

In considering the potential of the landscape to absorb development both visually and ecologically, the following matters shall be taken into account consistent with retaining openness and natural character:

- (i) whether, and to what extent, the proposed development is visible from public places;
- (ii) whether the proposed development is likely to be visually prominent to the extent that it dominates or detracts from views otherwise characterised by natural landscapes;
- (iii) whether any mitigation or earthworks and/or planting associated with the proposed development will detract from existing natural patterns and processes within the site and surrounding landscape or otherwise adversely effect the natural landscape character;
- (iv) whether, with respect to subdivision, any new boundaries are likely to give rise to planting, fencing or other land use patterns which appear unrelated to the natural line and form of the landscape; wherever possible with allowance for practical considerations, boundaries should reflect underlying natural patterns such as topographical boundaries;
- (v) whether the site includes any indigenous ecosystems, wildlife habitats, wetlands, significant geological or geomorphologic features or is otherwise an integral part of the same;
- (vi) whether and to what extent the proposed activity will have an adverse effect on any of the ecosystems or features identified in (v);
- (vii) whether the proposed activity introduces exotic species with the potential to spread and naturalise.

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(b) Effects on openness of landscape.

In considering the adverse effects of the proposed development on the openness of the landscape, the following matters shall be taken into account:

- (i) whether and the extent to which the proposed development will be within a broadly visible expanse of open landscape when viewed from any public road or public place;
- (ii) whether, and the extent to which, the proposed development is likely to adversely affect open space values with respect to the site and surrounding landscape;
- (iii) whether the proposed development is defined by natural elements such as topography and/or vegetation which may contain any adverse effects associated with the development.

(c) Cumulative Effects on Landscape Values

In considering whether there are likely to be any adverse cumulative effects as a result of the proposed development, the following matters shall be taken into account:

- (i) whether, and to what extent, the proposed development will result in the introduction of elements which are inconsistent with the natural character of the site and surrounding landscape;
- (ii) whether the elements identified in (i) above will further compromise the existing natural character of the landscape either visually or ecologically by exacerbating existing and potential adverse effects;
- (iii) whether existing development and/or land use represents a threshold with respect to the site's ability to absorb further change;
- (iv) where development has occurred or there is potential for development to occur (ie, existing resource consent or zoning), whether further development is likely to lead to further degradation

of natural values or inappropriate domestication of the landscape or feature.

(d) Positive Effects

In considering whether there are any positive effects associated with the proposed development the following matters shall be taken into account:

- (i) whether the proposed activity will protect, maintain or enhance any of the ecosystems or features identified in (a) - (v) above;
- (ii) whether the proposed activity provides for the retention and/or re-establishment of native vegetation and their appropriate management;
- (iii) whether the proposed development provides an opportunity to protect open space from further development which is inconsistent with preserving a natural open landscape;
- (iv) whether the proposed development provides an opportunity to remedy or mitigate existing and potential (ie, structures or development anticipated by existing resource consents) adverse effects by modifying, including mitigation, or removing existing structures or developments, and/or surrendering any existing resource consents;
- (v) the ability to take esplanade reserves to protect the natural character and nature conservation values around the margins of any lake, river, wetland or stream within the subject site;
- (vi) the use of restrictive covenants, easements, consent notices or other legal instruments otherwise necessary to realise those positive effects referred to in (i) - (v) above and/or to ensure that the potential for future effects, particularly cumulative effects, are avoided.

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(3) Visual Amenity Landscapes

(a) Effects on natural and pastoral character

In considering whether the adverse effects (including potential effects of the eventual construction and use of buildings and associated spaces) on the natural and pastoral character are avoided, remedied or mitigated, the following matters shall be taken into account:

- (i) where the site is adjacent to an Outstanding Natural Landscape or Feature, whether and the extent to which the visual effects of the development proposed will compromise any open character of the adjacent Outstanding Natural Landscape or Feature;
- (ii) whether and the extent to which the scale and nature of the development will compromise the natural or arcadian pastoral character of the surrounding Visual Amenity Landscape;
- (iii) whether the development will degrade any natural or arcadian pastoral character of the landscape by causing over-domestication of the landscape;
- (iv) whether any adverse effects identified in (i) - (iii) above are or can be avoided or mitigated by appropriate subdivision design and landscaping, and/or appropriate conditions of consent (including covenants, consent notices and other restrictive instruments) having regard to the matters contained in (b) to (e) below;

(b) Visibility of Development

Whether the development will result in a loss of the natural or arcadian pastoral character of the landscape, having regard to whether and the extent to which:

- (i) the proposed development is highly visible when viewed from any public places, or is visible from any public road;

- (ii) the proposed development is likely to be visually prominent such that it detracts from public or private views otherwise characterised by natural or arcadian pastoral landscapes;

- (iii) there is opportunity for screening or other mitigation by any proposed method such as earthworks and/or new planting, which does not detract from or obstruct views of the existing natural topography or cultural plantings such as hedge rows and avenues;

- (iv) the subject site and the wider Visual Amenity Landscape of which it forms part is enclosed by any confining elements of topography and/or vegetation;

- (v) any building platforms proposed pursuant to rule 15.2.3.3 will give rise to any structures being located where they will break the line and form of any skylines, ridges, hills or prominent slopes;

- (vi) any proposed roads, earthworks and landscaping will change the line of the landscape or affect the naturalness of the landscape particularly with respect to elements which are inconsistent with the existing natural topography;

- (vii) any proposed new boundaries and the potential for planting and fencing will give rise to any arbitrary lines and patterns on the landscape with respect to the existing character;

- (viii) boundaries follow, wherever reasonably possible and practicable, the natural lines of the landscape and/or landscape units;

- (ix) the development constitutes sprawl of built development along the roads of the District and with respect to areas of established development.

(c) Form and Density of Development

In considering the appropriateness of the form and density of development the following matters the Council shall take into account whether and to what extent:

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- (i) there is the opportunity to utilise existing natural topography to ensure that development is located where it is not highly visible when viewed from public places;
 - (ii) opportunity has been taken to aggregate built development to utilise common access ways including pedestrian linkages, services and open space (ie. open space held in one title whether jointly or otherwise);
 - (iii) development is concentrated in areas with a higher potential to absorb development while retaining areas which are more sensitive in their natural or arcadian pastoral state;
 - (iv) the proposed development, if it is visible, does not introduce densities which reflect those characteristic of urban areas.
 - (v) If a proposed residential building platform is not located inside existing development (being two or more houses each not more than 50 metres from the nearest point of the residential building platform) then on any application for resource consent and subject to all the other criteria, the existence of alternative locations or methods:
 - (a) within a 500 metre radius of the centre of the building platform, whether or not;
 - (i) subdivision and/or development is contemplated on those sites;
 - (ii) the relevant land is within the applicant's ownership; and
 - (b) within a 1,100 metre radius of the centre of the building platform if any owner or occupier of land within that area wishes alternative locations or methods to be taken into account as a significant improvement on the proposal being considered by the Council
 - must be taken into account.
- (vi) recognition that if high densities are achieved on any allotment that may in fact preclude residential development and/or subdivision on neighbouring land because the adverse cumulative effects would be unacceptably large.
 - (d) Cumulative effects of development on the landscape
 - In considering whether and the extent to which the granting of the consent may give rise to adverse cumulative effects on the natural or arcadian pastoral character of the landscape with particular regard to the inappropriate domestication of the landscape, the following matters shall be taken into account:
 - (i) the assessment matters detailed in (a) to (d) above;
 - (ii) the nature and extent of existing development within the vicinity or locality;
 - (iii) whether the proposed development is likely to lead to further degradation or domestication of the landscape such that the existing development and/or land use represents a threshold with respect to the vicinity's ability to absorb further change;
 - (iv) whether further development as proposed will visually compromise the existing natural and arcadian pastoral character of the landscape by exacerbating existing and potential adverse effects;
 - (v) the ability to contain development within discrete landscape units as defined by topographical features such as ridges, terraces or basins, or other visually significant natural elements, so as to check the spread of development that might otherwise occur either adjacent to or within the vicinity as a consequence of granting consent;
 - (vi) whether the proposed development is likely to result in the need for infrastructure consistent with urban landscapes in order to accommodate increased population and traffic volumes;
 - (vii) whether the potential for the development to cause cumulative adverse effects may be avoided, remedied or mitigated by way of

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covenant, consent notice or other legal instrument (including covenants controlling or preventing future buildings and/or landscaping, and covenants controlling or preventing future subdivision which may be volunteered by the applicant).

Note: For the purposes of this assessment matter the term "vicinity" generally means an area of land containing the site subject to the application plus adjoining or surrounding land (whether or not in the same ownership) contained within the same view or vista as viewed from:

- from any other public road or public place frequented by the public and which is readily visible from that public road or public place; or
- from adjacent or nearby residences.

The "vicinity or locality" to be assessed for cumulative effect will vary in size with the scale of the landscape i.e. when viewed from the road, this "vicinity" will generally be 1.1 kilometre in either direction, but maybe halved in the finer scale landscapes of the inner parts of the Wakatipu basin, but greater in some of the sweeping landscapes of the upper Wakatipu and upper Clutha.

(e) Rural Amenities

In considering the potential effect of the proposed development on rural amenities, the following matters the Council shall take into account whether and to what extent:

- (i) the proposed development maintains adequate and appropriate visual access to open space and views across arcadian pastoral landscapes from public roads and other public places; and from adjacent land where views are sought to be maintained;
- (ii) the proposed development compromises the ability to undertake agricultural activities on surrounding land;

- (iii) the proposed development is likely to require infrastructure consistent with urban landscapes such as street lighting and curb and channelling, particularly in relation to public road frontages;

- (iv) landscaping, including fencing and entrance ways, are consistent with traditional rural elements, particularly where they front public roads.

- (v) buildings and building platforms are set back from property boundaries to avoid remedy or mitigate the potential effects of new activities on the existing amenities of neighbouring properties.

(4) Other Rural Landscapes

Where it has been determined that the proposed development is not within a ONL or VAL but otherwise within the Rural General zone consideration of the potential effects of the development shall include taking into account whether and the extent to which:

- (i) the proposed development will be complementary or sympathetic to the character of adjoining or surrounding visual amenity landscape;
- (ii) the proposed development will be visible from public roads or from neighbour's properties;
- (iii) the proposed development utilises existing topography or vegetation to integrate the development into the landscape and reduce its visibility;
- (iv) the proposed development will adversely affect the naturalness and rural quality of the landscape through inappropriate landscaping including earthworks and planting as a result of any proposed mitigation or increased domestication;
- (v) landscaping as a result of development maintains and/or enhances historic or cultural patterns although it is acknowledged that this assessment matter is not necessarily consistent with others e.g. (iii) and (iv) above or (vii) below;

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- (vi) the proposed development is complementary or sympathetic to, or can be co-ordinated with, existing or proposed development on adjoining or adjacent properties in terms of landscaping, roof design, roof materials and/or colours, and other external materials and/or colours;
 - (vii) the proposed development is designed and/or intended to be carried out in a comprehensive manner taking into account the topography of the site, the size and configuration of the property being developed, the extent and nature of existing or proposed development on adjoining or adjacent properties, and the opportunities for shared access and/or shared amenities;
 - (viii) the nature and extent of building setbacks and/or earthworks and/or landscaping can create buffers to avoid or mitigate the potential effects of development on adjoining properties, public roads or public places.
 - (ix) the proposed subdivision is part of a co-ordinated development plan incorporating any balance land (outside the proposed subdivision) in the same ownership;
 - (x) here is an opportunity to provide a communal passive or active recreational area which is accessible to residents outside the subdivision as well as within the subdivision;
 - (xi) the proposed development does not introduce densities which reflect those characteristic of urban areas;
 - (xii) the proposed development maintains the rural amenities of the neighbourhood.
- (b) Any adverse effects of the activity on indigenous ecosystems from animal pests and domestic animals.
 - (c) Any need to avoid, contain, manage and/or monitor the adverse effects of introduced plant species/forms, which have potential to spread and naturalise.
 - (d) The extent to which the activity provides opportunities for making available information regarding indigenous ecosystems.
 - (e) The extent to which activities will protect and enhance the survival and well being of indigenous plants and/or animals that are rare, vulnerable or endangered, or significant within the District, Region or nationally.
 - (f) In the case of activities proposed in the vicinity of rock outcrops, the extent to which the activity will adversely affect, or provide opportunities to enhance, the protection of lizard populations and their habitat.

5.4.2.3 Assessment Matters General

i General - Nature Conservation Values

- (a) The extent to which activities will result in opportunities for the protection and enhancement of indigenous bio-diversity or indigenous ecosystems.

Glossary of Māori Terms

Atua: god

Hapū: sub-tribe

Hui: meeting

Iwi: tribe

Kaitiaki: those exercising kaitiakitanga

Kaitiakitanga: defined in the RMA as ‘the exercise of guardianship ... in relation to a resource, and includes the ethic of stewardship based on the nature of the resource itself.’ See Appendix 1 for a fuller explanation.

Kaupapa: a philosophy, protocol, procedure or policy

Mana: authority, control, status

Mana tapu: mana derived from a spiritual basis

Mana whenua: authority over an area of land

Marae: meeting place

Mātauranga: knowledge, education

Moana: lake, sea

Papakāinga: a dwelling or set of dwellings, usually on ancestral land

Pātere: a traditional song form

Rangatiratanga: chiefly status, authority

Rohe: district or area and, in conjunction with whānau, hapū or iwi, the area in which the group has mana whenua

Tangata whenua: literally ‘the people of the land’, referring to those Māori with close connection to a particular land area

Taonga: a treasure, or thing of value

Tauparapara: a traditional formal chant, often introducing a speech (mihi)

Tikanga: literally ‘what is right’; used to indicate a custom. The RMA defines ‘tikanga Māori’ as ‘Māori customary values and practices’.

Tupuna: ancestor

Tūrangawaewae: literally ‘a place to stand’; usually used in reference to a marae or land where tangata whenua rights are held

Uri: descendant

Wāhi tapu: a place of spiritual significance

Waiata: a song

Waka: canoe, descendants of historic canoe

Whakapapa: geneology

Whakatauki: a proverb

Whānau: extended family

Whanaungatanga: kinship

Whenua: ground

Whenua mokohia: literally ‘the tattooed land’, or land bearing the imprint of history

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